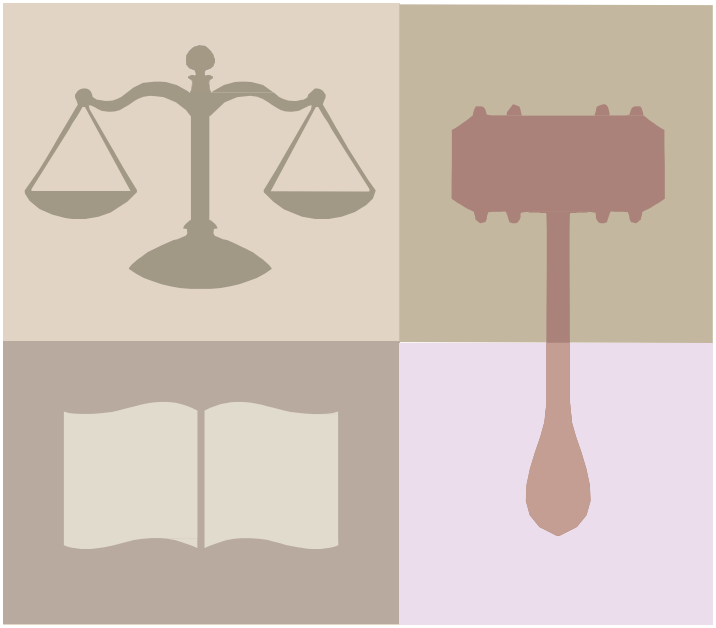
Code of Student Conduct

2026-2027



The School Board of Highlands County

THE SCHOOL BOARD OF HIGHLANDS COUNTY

CODE OF STUDENT CONDUCT
2026-2027

Florida law requires each school district to distribute to students, parents, guardians, teachers and other school personnel a Code of Student Conduct developed cooperatively by students, parents and teachers. This Code of Student Conduct is adopted as official School Board Policy. This Code has a “zero-tolerance” policy for conduct that poses a threat to school safety. (SBHC Policy 5500). Zero-tolerance policies must apply equally to all students and are not intended to be rigorously applied to petty acts of misconduct and misdemeanors. This policy is in force on school grounds, on school-sponsored transportation, before and after school hours and at all school-sponsored functions (field trips, athletic functions, after-school daycare and other school-sponsored events).

It is the policy of the School Board of Highlands County not to discriminate against employees or students by either deliberate or inadvertent bias based on race, color, sex, age, national origin, handicap, marital status or religion. It is further recognized that a passive policy of nondiscrimination will not of itself result in providing opportunities to those individuals who might otherwise be adversely affected. It is for this reason that the School Board commits itself to a program of affirmative action designed not to discriminate against anyone. According to the Florida Administrative Code 6A-6.0908(3), “national origin, minority or limited English Proficient students shall not be subjected to any disciplinary action because of their use of a language other than English.”

It is the intent of this Code to be a strict disciplinary guide with its “minimum consequences” listed. Consequences over the “minimum” may be assigned by the Principal. If the violation is gang related, the Principal shall impose a more severe discipline/punishment. WHILE STUDENTS MAY BE DISCIPLINED FOR INFRACTIONS ACCORDING TO THE RESPONSES OUTLINED IN THIS CODE OF STUDENT CONDUCT, BE AWARE THAT THERE COULD BE ADDITIONAL CONSEQUENCES THROUGH LAW ENFORCEMENT FOR ACTS THAT VIOLATE THE LAW.

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SECTION I: PUBLIC NOTICE

STUDENT RECORDS

The School Board of Highlands County (SBHC) maintains educational records in accordance with state and federal laws. Copies of SBHC Student Records Policy are available for public use during school hours at the SBHC District Office, 426 School Street, Sebring, Florida between 8:00 a.m. and 4:30 p.m., Monday through Friday. The Student Records Policy (po8330) is also available online in the SBHC policy manual at this link - **http://go.boarddocs.com/fl/highlfl/Board.nsf/goto?open&id=CGSHPE49620E**

Parents, legal guardians or eligible students have the right to review records on their child, the right to a copy of the records (at a cost of $0.15 per page), the right to challenge information contained in the record, the right to a hearing of the school disagrees to change or destroy information when challenged, and the right to waive access to letters of statements of recommendations or evaluations.

Student education records are forwarded to other schools that have requested the records and in which the student seeks or intends to enroll.

NOTIFICATION OF STUDENT SOCIAL SECURITY NUMBER COLLECTION AND USAGE

In compliance with Florida Statute 119.071(5), this statement provides notification of the purpose for the collection and usage of student Social Security numbers by SBHC. SBHC collects and uses a Social Security number only if specifically authorized by law to do so or if it is imperative for the performance of its duties and responsibilities as prescribed by law.

Pursuant to Florida Statute 1008.386, each district school board shall request that each student enrolled in a public school in this state provide his or her Social Security number. A student satisfies this requirement by presenting to school enrollment officials his or her Social Security card or a copy of the card. The school district shall include the Social Security number in the student's permanent records.

All Social Security numbers are protected by federal regulations Family Educational Rights and Privacy Act (FERPA). To protect identity, the SBHC will secure student Social Security numbers from unauthorized access and assign a unique student identification number. This unique identification number will then be used for all associated educational purposes.

FAMILY EDUCATIONAL RIGHTS AND PRIVACY ACT (FERPA)

The Family Educational Rights and Privacy Act (FERPA) affords parents and students over 18 years of age ("eligible students") certain rights with respect to the student's education records. These rights are:

(1) ***The right to inspect*** *and review the student's education records within 45 days of the day the school receives a request for access.* Parents or eligible students should submit to their respective school guidance counselor a written request that identifies the record(s) they wish to inspect. A list of addresses for each school is included on the last page of this Code of Student Conduct. The School official will make arrangements for access and notify the parent or eligible student of the time and place where the records may be inspected.

(2) ***The right to request*** *the amendment of the student's education records that the parent or eligible student believes are inaccurate.* Parents or eligible students may ask the School to amend a record thatthey

believe is inaccurate. They should write their respective school guidance counselor; clearly identify the part of the record they want changed and specify why it is inaccurate. If the School decides not to amend the record as requested by the parent or eligible student, the School will notify the parent or eligible student of the decision and advise them of their right to a hearing regarding the request for amendment. Additional information regarding the hearing procedures will be provided to the parent or eligible student when notified of the right to a hearing.

(3) ***The right to consent*** *to disclosures of personally identifiable information contained in the student's education records, except to the extent the FERPA authorizes disclosure without consent.* One exception, which permits disclosure without consent, is disclosure to school officials with legitimate educational interests. A school official is a person employed by the School as an administrator, supervisor, instructor or support staff member (including health or medical staff and law enforcement unit personnel); a person serving on the School Board; a person or company with whom the School has contracted to perform a special task (such as an attorney, auditor, medical consultant, or therapist); or a parent or student serving on an official committee, such as a disciplinary or grievance committee, or assisting another school official in performing his or her tasks.
A school official has a legitimate educational interest if the official needs to review an education record in order to fulfill his or her professional responsibility.
Upon request, the School discloses education records without consent to officials of another school district in which a student seeks or intends to enroll.

(4) **The right to challenge** District noncompliance with a parent's or eligible student's request to amend the records through a hearing.

(5) ***The right to file*** *a complaint with the U.S. Department of Education concerning alleged failures by The Highlands County School District to comply with the requirements of FERPA.*
The name and address of the Office that administers FERPA are:

Family Policy Compliance Office, U.S. DOE 400 Maryland Avenue, S.W.
Washington, D.C. 20202-5901

(6) If any official or employee of the District refuses to comply with statutory privacy provisions, an aggrieved parent or student who receives injunctive relief may be awarded attorney fees and court costs.

(7) **The right to obtain** a copy of the District's policy and administrative procedures on student records.

DIRECTORY INFORMATION

Highlands County Public Schools reserve the right to release "directory information" without prior permission of the parent **unless the parent has notified the Principal of the school, in writing, within fourteen days (14) calendar days of the beginning of school that directory information is not to be released.** Lists of students will not be released without School Board action when not otherwise authorized by law or SBHC policies.
Directory information for grades K – 8 consists of student name, participation in and photographs of officially recognized school activities, photographs in the school memory book / yearbook, school newspaper, school website, grade level and awards received.
Directory information for grades 9 – 12 consists of student name, address, participation in and photographs of officially recognized school activities, photographs in the school yearbook, school newspaper, school website, grade level, awards received, the G.P.A. of students recommended for academic recognition (ex. Scholarship Recognition), weight and height of members of athletic teams, and dates of attendance.

Personally, identifiable information can be disclosed, transferred or released without prior consent of the parent of a student or the eligible student in connection with enrollment in another school, application for financial aid, research, a state statute, and an accrediting organization. Personally, identifiable information will be released without parent consent to appropriate officials in emergency situations, to comply with a lawfully issued subpoena and in cases involving compulsory school attendance and child abuse.

RANDOM STUDENT DRUG TESTING PROGRAM

It is the Policy of the School Board of Highlands County po5530.01 that any student who participates in school athletics, extra/co-curricular activities, school sponsored clubs, on campus parking, students who have violated the District substance abuse policy, Students assigned to the Academy for a Code of Student Conduct violation, and students who elect to participate in the program with parental consent shall be subject to random drug testing in accordance with this policy.

The “use of” or “possession of” alcohol or drugs by a student at any time is both illegal and detrimental to that student’s ability to participate in interscholastic athletics, extracurricular activities and co-curricular activities, and is hereby prohibited. Any student determined to be in violation of this policy is subject to disciplinary action related to his or her participating in interscholastic athletics, extracurricular activities or co-curricular activities which may include suspension or removal from athletics, extracurricular participation or co-curricular activities.

PHOTOGRAPHS/PUBLICATIONS

From time to time, Highlands County Public Schools photograph or video tape students, and occasionally post student-produced work online for public recognition. Local media often utilize these photographs and video tapes, and/or work, or come on campus with school permission to photograph or videotape students. Surveillance video tapes are also used on buses and in certain areas of school campuses. **If the parent does not wish photographs and/or video tapes of his/her child(ren) released or doesn’t want their children(s) work posted online, he/she must notify the school Principal in writing within 30 calendar days of the beginning of the school year**. The principal will then take every reasonable effort to ensure such photographs or video taken for the school yearbook or similar publications are excluded.

Students may be videotaped on buses and in some other situations for security and safety purposes; these video tapes may be utilized as evidence for certain disciplinary procedures. Additionally, students may be videotaped by school personnel for diagnostic/educational purposes; these tapes would be maintained in a student’s record and available to the parent. Parental notice restricting photographs or video tapes will not apply to the use of these photographs or video tapes for disciplinary procedures.

Highlands County Public Schools may use these photographs and video tapes for an indefinite period of time unless this authorization is revoked in writing. However, if revoked, Highlands County Public Schools shall not be required to recall affected publications, photographs, video tape, and other recorded images then in use.

TELECOMMUNICATIONS PLAN & ELECTRONIC COMMUNICATION USE

Summary of School Board po7540.03

Acceptable Use: Use of the Internet and email must be in support of education and research that is consistent with the educational goals and policies of the School Board of Highlands County (SBHC).

Privileges: The use of the Internet and email is not a right, but a privilege, and inappropriate use will result in cancellation of that privilege. School and district administrators will determine inappropriate use and their decision is final.

Etiquette: You are expected to abide by the generally accepted rules of network etiquette. Be polite. Do not use vulgar or obscene language. Students should not reveal their private address or phone number or those of others. Electronic mail is not guaranteed to be private.

Warranties: The SBHC makes no warranties of any kind, whether expressed or implied, for the service it is providing. The District is not responsible for the accuracy or quality of information obtained through the Internet.

Vandalism: Vandalism (malicious attempt to harm or destroy data of another user, intranet, internet or other networks or equipment) will result in cancellation of privileges or other appropriate punishment. This includes the creation of, or the uploading of, computer viruses on the Internet or host site.

Security: If you identify a security problem, you must notify a system administrator immediately. Do not show or identify the problem to others. Do not use another individual's account or give your account number to anyone else. Any user identified as a security risk may be denied Internet access.

All terms and conditions in this policy are applicable to all users of the Internet, email, and other networks. You may contact a school or district administrator if you are interested in obtaining a complete copy of the SBHC Policy

Safety Guidelines for Students Student users are expected to protect themselves by following these guidelines:

a. Do not reveal any personal information of yours or that of any other person (name, address, phone number)
b. Never share your password with anyone.
c. Student users shall promptly disclose to their teacher or another school employee any message the user receives that is inappropriate or makes the user feel uncomfortable.
d. Student users shall receive or transmit communications using only SBHC approved and SBHC managed communication systems.
e. Students shall not use e-mail in connection with junk e-mail, spamming or any mass mailing.
f. Students shall not create a false identity or otherwise attempt to mislead others as to the identity of the sender or the origin of the message.
g. Students shall not transmit unlawful, harassing, libelous (gossip), abusive, threatening, harmful, vulgar, obscene or otherwise objectionable material of any kind.

Note: Student account activity is subject to monitoring by both human oversight and third-party software upon logging into a device. This monitoring applies to both school-issued and non-school-issued devices when used with student accounts. Alerts generated through these various monitoring systems may notify school administrators, deans, and law enforcement of potential concerns requiring disciplinary or administrative action. Alerts may include, but are not limited to, the following categories: Indicators of self-harm or mental health concerns, nudity or explicit content, and copyright infringement or intellectual property violations.

Users who disregard this policy and its accompanying procedures may have their user privileges suspended or revoked, and disciplinary action taken against them. Users are personally responsible and liable, both civilly and criminally, for use of District devices that are not authorized by this policy and it accompanying procedures (i.e., School Board po7540.03)

NOTIFICATION OF RIGHTS UNDER THE PROTECTION OF PUPIL RIGHTS AMENDMENT (PPRA)

PPRA affords parents certain rights regarding our conduct of surveys, collections and use of information for marketing purposes and certain physical exams. These include the right to:

Consent before students are required to submit to a survey that concerns one of more of the following protected areas ("protected information survey") if the survey is funded in whole or in part by a program of the U.S. Department of Education:

1. Political affiliations or beliefs of the student or student's family;
2. Mental or psychological problems of the student or student's family;
3. Sex behavior or attitudes
4. Illegal, anti-social, self-incriminating or demeaning behavior.
5. Critical appraisals of others with whom respondents have close family relationships;
6. Legally recognized privileged relationships, such as with lawyers, doctors or ministers;
7. Income, other than as required by law to determine program eligible
8. Religious practices, affiliations, or beliefs of the student or the student's parent

Receive notice and an opportunity to opt a student out of –

1. Any other protected information survey, regardless of funding;
2. Any non-emergency, invasive physical exam or screening required as a condition of attendance, administered by the school or its agent, and not necessary to protect the immediate health and safety of a student, except for hearing, vision or scoliosis screenings or any physical exam or screening permitted or required under State law; and
3. Activities involving collection, disclosure, or use of personal information obtained from students for marketing or to sell or otherwise distribute the information to others.

Inspect, upon request and before administration or use –

1. Protected information surveys of students;
2. Instruments used to collect personal information from students for any of the above marketing, sales or other distribution purposes; and Instructional material used as part of the educational curriculum.

These rights transfer from the parents to a student who is 18 years old or an emancipated minor under State law.

The School Board of Highlands County (SBHC) will develop and adopt policies, in consultation with parents, regarding these rights, as well as arrangements to protect student privacy in the administration of protected information surveys and the collection, disclosure or use of personal information for marketing, sales or other distribution purposes.

The SBHC will directly notify parents of these policies at least annually at the start of each school year and after any substantive changes. Unless otherwise contained in the Code of Student Conduct annual notice, The SBHC will also directly notify, such as through U.S. mail or email, parents of students who are scheduled to participate in the specific activities or surveys noted below and will provide an opportunity for the parent to opt his or her child out of participation of the specific activity or survey. The SBHC will make this notification to parents at the beginning of the school year if the District has identified the specific or approximate dates of the activities or surveys at that time. For surveys and activities scheduled after the school year starts, parents will be provided reasonable notification of the planned activities and surveys listed below and be provided an opportunity to opt their child out of such activities and surveys. Parents will also be provided an opportunity to review any pertinent surveys. *Parents who believe their rights have been violated may file a complaint with:* Family Policy Compliance Office, U.S. Department of Education, 400 Maryland Avenue, S.W., Washington, D.C. 20202-5901

INFORMATION TO MILITARY RECRUITERS

The No Child Left Behind Act requires the School Board to provide, on a request made by military recruiters or an institution of higher education, access to secondary school students' names, addresses and telephone listings. A secondary school student or the parent of the student may request that the student's name, address and telephone listing not be released to military or to institutions of higher education without prior written parental consent. **A parent wishing to prohibit the release of this information should notify the school Principal within thirty (30) calendar days of the start of the school year in writing and shall specify in writing whether the prohibition applies to both military recruiters and institutions of higher education or only to military recruiters or only to institutions of higher education.** This notification to the school Principal must be separate from the notification which the parent provided in regard to "directory information."

CIVILITY POLICY

Members of the Highlands County School district staff will treat parents, students and other members of the public with respect and expect the same in return. The district must keep schools and administrative offices free from disruptions and prevent unauthorized persons from entering school/district grounds. Accordingly, this policy promotes mutual respect, civility and orderly conduct among district employees, parents, students and the public. We do not intend this policy to deprive any person of his or her right to freedom of expression. Rather, we seek to maintain, to the extent possible and reasonable, a safe, harassment-free workplace for our students and staff. In the interest of presenting teachers and other employees as positive role models, we encourage positive communication and discourage volatile, hostile or aggressive actions. This district seeks public cooperation with this endeavor.

DISRUPTIVE INDIVIDUAL MUST LEAVE SCHOOL GROUNDS. Any individual who disrupts or threatens to disrupt school/office operations, threatens the health and safety of students or staff, willfully causes property damage, uses loud and/or offensive language that could provoke a violent reaction or who has otherwise established a continued pattern of unauthorized entry on school district property, will be directed to leave school or school district property promptly by the school's principal, his/her designee, or other chief administrative officer.

DIRECTIONS TO STAFF IN DEALING WITH ABUSIVE INDIVIDUAL. If any member of the public uses obscenities or speaks in a demanding, loud, insulting, and/or demeaning manner, the administrator or employee to whom the remarks are directed will calmly and politely warn the speaker to communicate civilly.

If the abusive individual does not stop the behavior, the district employee will verbally notify the abusing individual that the meeting, conference, or telephone conversation is terminated; and, if the meeting or conference is on district premises, the employee shall direct the abusive individual to leave promptly.

PROVIDE POLICY AND REPORT INCIDENT. Parents shall be provided a copy of this policy via the Code of Student Conduct. Other members of the public shall receive a written copy of this policy when a staff member determines that the provisions of this policy are being violated. The staff member will then immediately notify his/her supervisor and provide a written report of the incident (MIS 01.11.) **If necessary, the School Resource Officer or other local law enforcement will be notified of the incident.**

SCHOOL BUS TRANSPORTATION

PERSONAL INJURY NOTICE

Students are expected to look to their own safety, the safety of other passengers, and to assist the school bus operator to this end. Beyond the exercise of reasonable care, the School Board of Highlands County and its agents are not responsible for injuries to students caused by their own inattention, carelessness, or the acts of other motorists, adverse traffic and weather conditions or other acts of nature.

INJURY CLAIMS ARISING FROM TRAFFIC ACCIDENTS INVOLVING DISTRICT-OWNED SCHOOL BUSES

All school buses used in the home-to-school and school-to-home transportation of students to schools in Highlands County are owned and operated by The School Board of Highlands County, Florida, a corporate public body. The Board complies with the tort liability requirements regarding school buses found in Chapter 1006.24, Florida Statutes. Public school buses are defined by state statutes as 'No Fault' vehicles. (627.732, F.S.) In such cases, insurance coverage attaches to the individual, not the vehicle.

If a student is injured as a result of an auto accident while occupying a school bus, the student would recover through the Personal Injury Protection auto policy of the parent, as long as he/she is a resident of the same household. If the parent does not own a vehicle or owns a vehicle but is not insured as required by statute, the student has no recovery through Personal Injury Protection coverage.

6A-3.0121 Florida Administrative Code

The district shall inform parents, guardians, and students at least annually in writing of their responsibilities and related district policies as follows:

1. To ensure the safe travel of their students during the portions of each trip to and from school and home when the students are not under the custody and control of the school district, including during each trip to and from home and the assigned bus stop when the school district provides bus transportation,

2. To ensure that students ride only in their assigned school buses and get off only at assigned bus stops, except when the district has approved alternative buses or arrangements,

3. To ensure students are aware of and follow the district's adopted Code of Student Conduct while the students are at school bus stops and to provide necessary supervision during times when the bus is not present,

4. To ensure that, when the physical disability of the student renders the student unable to get on and off the bus without assistance, the parent or guardian provides the necessary assistance to help the student get on and off at the bus stop, as required by district policy or the student's individual educational plan.

5. It is the School Board of Highlands County Transportation Departments policy that Kindergarten student(s) or students transported on special transportation school buses shall be released at the bus stop to a parent, guardian, or authorized adult from the Skyward Student database.

- Parent(s)/Guardian(s) will come to the bus to receive their students to avoid students going to the wrong vehicle or misidentifying vehicles that result in the student being left alone at the bus stop.

6. Elementary age students (1st grade through 5th grade) and secondary students are allowed to be dismissed from the school bus without a parent, guardian, or authorized adult present, **UNLESS** the parents have communicated, they do not want their student released without parent, guardian, or authorized adult present.
   - If parents of students have been at the bus stop consistently during the am and pm, but they are missing one day, we will not release the student as a precaution for the student(s) safety. The student will be returned to the school.

UNAUTHORIZED BOARDING OF A SCHOOL BUS:
Any person who attempts to board a school bus without prior authorization by the driver or a school official is subject to arrest and prosecution under the law as per School Board po9150 and F.S. 810.097.

NONDISCRIMINATION POLICY

It is the policy of The School Board of Highlands County not to discriminate against employees or students by either deliberate or inadvertent bias based on race, color, sex, age, national origin, handicap, marital status, or religion. It is further recognized that a passive policy of nondiscrimination will not of itself result in providing opportunities to those individuals who might otherwise be adversely affected. It is for this reason that The School Board of Highlands County commits itself to a program of affirmative action designed not to discriminate against anyone.

The following person should be notified if the Equity Nondiscrimination Policy is violated:
Director of Human Resources, Carla Ball
The School Board of Highlands County
426 School Street, Sebring, Florida 33870
Phone: (863) 471-5732 FAX: (863) 471-5673

BICYCLE HELMETS

Under Florida law, any person who is under the age of 16 and is riding a bicycle, or is a passenger on a bicycle, must wear a bicycle helmet which meets certain standards. Law enforcement officers and school crossing guards are authorized to issue a bicycle safety brochure and a verbal warning to anyone violating this requirement. Violators may be assessed a fine or issued a traffic citation.

FOOD AND DRINK SAFETY

For their own safety, students are not permitted to accept food, drinks, candy, or consumable items from other students. Students should only consume items provided by their parent/guardian or purchased directly from the school or an approved vendor.

Students who choose to accept and consume food or drink from another student do so at their own risk and will be held responsible for any prohibited substances found in the item including but not limited to drugs, alcohol, or other contraband. This expectation is in place to protect student health, safety, and well-being.

SKATEBOARDS, ETC.

Use of skateboards, roller blades, shoes with rollers, scooters, etc. are prohibited on school campuses and School Board property.

POLICY ON STUDENT DRINKING AND SMOKING

It is unlawful for any person under the age of 21 to smoke in, on or within 1,000 feet of any school property between the hours of 6:00 a.m. and midnight. Law enforcement may issue a citation and fine up to twenty-five dollars ($25.00), or fifty (50) hours of community service or, if available, assignment and completion of a

school-approved anti-tobacco “alternative to suspension” program, Section 386.212, Florida Statute. Underage drinking is a serious problem in Highlands County. Underage drinking is against the law and will be treated in this manner. The State of Florida will now prosecute every minor caught with alcohol and every minor caught using a fake ID to buy alcohol. Should the Court find you guilty, in addition to penalties involving alcohol, you will also lose your driver’s license or the right to get a license when you turn sixteen for up to one year.

SCHOOL HEALTH SCREENINGS

As per the School Health Plan, Florida Statutes *381.0056(7)(e),* and Administrative Rules (Chapter 64F- 6.003, F.A.C.), the following health screenings will be conducted during the school year:

- Vision/Hearing and Height/Weight/BMI for grades K, 1, 3, and 6;
- Scoliosis for grade 6;
- Dental screenings for grades K, 1, 2, 3, 4, and 5.

If you do not want your child’s Height/Weight/BMI screening information sent home with your child, but would rather it be mailed, please submit a written request with your mailing address to the health room staff at your child’s school.

- At the beginning of the school year, each school district shall notify parents of each healthcare services offered at their student’s school and the option to withhold consent.
- Consents provided herein shall apply on school campus, school transportation or at a school-related activity.
- This consent will remain in effect for the current academic school year or until the parent/guardian indicates in writing that they wish to rescind consent for school health services.
- When necessary, emergency health services such as cardiopulmonary resuscitation (CPR) or use of an automated external defibrillator (AED) will be performed until emergency medical services arrive on campus.
- Separate parent/guardian authorizations will be required for the school clinic staff or school staff to administer daily or as-needed prescribed or over-the-counter medications, conduct medical procedures or provide medical treatment.

PLEDGE OF ALLEGIANCE

Per Florida Statute 1003.44; the Pledge of Allegiance to the Flag shall be recited at the beginning of the day in each public elementary, middle and high school in the state. Upon written request by a student’s parent (to the school’s principal), the student must be excused from reciting the pledge, including standing and placing the right hand over his or her heart.

MOMENT OF SILENCE

The Principal shall require teachers in first-period classrooms in all grades to set aside at least one (1) minute, but not more than two (2) minutes daily, for a moment of silence. A staff member may not make suggestions as to the nature of any reflection that a student may engage in during the moment of silence. District staff shall encourage parents or guardians to discuss the moment of silence with their children and to make suggestions as to what the best use of this time.

Students may not interfere with other students’ participation during the moment of silence.

RESTROOM AND CHANGING FACILITIES USAGE

Any student who willfully enters, for a purpose other than [the allowable exceptions], a restroom or changing facility designated for the opposite sex on any School Board of Highlands County property and refuses to depart when asked to do so by any instructional or administrative personnel or a safe school officer as per Section 553.865(9)(a) Florida Statute, will be disciplined utilizing the Chart of Infractions, located within this

Code of Student Conduct. Infractions that could be considered include but are not limited to: defiance of authority and inappropriate behavior.

PARTICIPATION IN EXTRACURRICULAR ACTIVITIES

1. Eligibility: Students who meet specified academic and conduct requirements are eligible to participate in extracurricular activities as per School Board po5780 (see alsopo2430)

2. Home Education Students: Home education students who meet specified academic and conduct requirements are eligible to participate in extracurricular activities at the public school to which the student would be assigned or could choose to attend according to Board Policies, or may develop an agreement to participate at a private school.

3. Charter School Students: Charter school students who meet specified academic and conduct requirements are eligible to participate in extracurricular activities at the school to which the student would be assigned or could choose to attend according to Board Policies unless such activity is provided by the student's charter school.

4. Florida Virtual School Full-Time Students: Florida virtual school full-time students who meet specified academic and conduct requirements are eligible to participate in extracurricular activities at the public school to which the student would be assigned or could choose to attend according to Board Policies.

5. A student not currently suspended from interscholastic or intrascholastic extracurricular activities, or suspended or expelled from school, pursuant to a district school board's suspension or expulsion powers provided in law, including ss. 1006.07, 1006.08, and 1006.09, is eligible to participate in interscholastic and intrascholastic extracurricular activities.

6. A student may not participate in a sport if the student participated in that same sport at another school during that school year, unless the student meets the criteria in s.1006.15(3)(h).

7. A student's eligibility to participate in any interscholastic or intrascholastic extracurricular activity may not be affected by any alleged recruiting violation until final disposition of the allegation pursuant to s. 1006.20(2)(b).
   (b) Students who participate in interscholastic and intrascholastic extracurricular activities for, but are not enrolled in, a public school pursuant to s. 1006.15(3)(c)-(e) and (8), are subject to the district school board's code of student conduct for the limited purpose of establishing and maintaining the student's eligibility to participate at the school.
   (c) The provisions of this subsection apply to interscholastic and intrascholastic extracurricular activities conducted by charter schools and private schools, as applicable, except that the charter school governing board, or equivalent private school authority, is responsible for the authority and responsibility otherwise provided to district school boards.

8. The Florida High School Athletic Association (FHSAA) continues to retain jurisdiction over the following provisions in s. 1006.20, which may not be implemented in a manner contrary to this section: membership in the FHSAA; recruiting prohibitions and violations; student medical evaluations; investigations; sanctions for coaches; school eligibility and forfeiture of contests; student concussions or head injuries; the sports medical advisory committee; and the general operational provisions of the FHSAA.

SECTION II: ROLES AND RESPONSIBILITIES

STUDENTS' ROLE AND RESPONSIBILITY

Students Have the ***RIGHT*** to:	Students Have the ***RESPONSIBILITY*** to:
Observe all school rules or suffer the consequences of unacceptable behavior. Students will be familiar with the District Code of Student Conduct and the School Student Handbook.	Observe all school rules or suffer the consequences of unacceptable behavior. Students will be familiar with the District Code of Student Conduct and the School Student Handbook.
Be shown personal respect by all other students and school personnel.	Show respect to all other students and school personnel.
Make appropriate use of school facilities, properties and materials.	Respect and protect school facilities, properties and materials.
Attend school and benefit from quality educational opportunities.	Attend school and all classes on a regular basis; be punctual (in class and prepared for work when the bell rings.)
Have access to an appropriate education, including instruction and use of materials and tests at a level which allows an opportunity for success.	Participate in educational opportunities by coming to class prepared to learn, completing classroom assignments and homework to the best of their abilities.
Hear, examine and express divergent points of view, including freedom of speech, written expression and symbolic expression.	Consider and respect the divergent point of view of others. Be sure that personal expressions (speech, written or symbolic) do not infringe on the rights of others.
Know in advance how grades in a class will be determined.	Understand the teachers' grading systems, monitoring their own progress in each class.
Enjoy a reasonable degree of personal privacy, be safe and feel safe at school.	Keep their persons and property free of dangerous or illegal objects, materials and substances; pose no threat to others.
Participate in extracurricular activities and clubs if they qualify academically and physically, if appropriate. Students may not be excluded on the basis of sex (except as allowed under Title IX), color, race, ethnic origin, religion or handicap. Students may be excluded for disciplinary reasons.	Abide by the rules of extracurricular activities, display school spirit and good sportsmanship.
Choose whether or not to participate in patriotic or religious activities.	Respect the rights of others to participate in patriotic or religious activities.
Receive person, academic and vocational counseling.	Seek personal, academic and vocational counseling.
Receive appropriate due process in all disciplinary actions, including an appeal procedure.	Cooperate with school personnel in cases involving disciplinary actions, following prescribed steps for an appeal and accepting final decisions.
Dress comfortably in a way appropriate to a school setting.	Choose clothing that adheres to the established school's dress code.
Assemble peacefully on school grounds.	Assemble so as not to disrupt the educational process.
Participate in school government based on a democratic process.	Take an active interest in student government.
Remain in the school program if married, if a parent or if pregnant.	Seek regular medical advice regarding school attendance.
Have access to records and/or transcripts as provided by statute.	Provide the school with all information relevant to making educational decisions, including identification when requested by any staff member, i.e., custodian, bus driver, bus monitor.
Be free from harassment by others and report any harassment without fear of retaliation.	Refrain from harassing others and retaliating against persons who complain of harassment.

PARENTS' ROLE

If the Highlands County school system is to do its job, the home and the school must cooperate. The school's responsibility is to provide a quality education in a safe environment for all students. The parents' responsibility includes the following:

1. Understand and support the Code of Student Conduct. Discuss the Code of Student Conduct with your child emphasizing that appropriate behavior enhances the learning process.

2. ***Teach your child self-respect, respect for the law, respect for the authority in the school and respect for the rights and property of others.***

3. Show a positive attitude toward the school and toward your child's learning progress by assisting your child with assignments and homework to the best of your ability.

4. Make certain your child attends school all day, every day, unless the child is ill; send a written excuse for legitimate absences. Your child's attendance affects the quality of his/her education and our funding. Please review the Compulsory School Attendance guidelines, page 20-22.

5. Ensure that your child has the necessary school supplies each day, i.e., paper, pencils, etc.

6. Know your child's school, its staff and its curriculum. **Communicate with your child's teachers on a frequent basis.**

7. Work closely with school personnel to solve any disciplinary or academic problems. Parents may be requested to observe the student's classroom behavior to help solve any disciplinary or academic problems.

8. Teach your child to dress properly and neatly and to be clean and well groomed. Please review The School Board of Highlands County Student Dress Code Policy, page 22-23,and your child's individual school dress code.

9. ***Make sure the school has your current home and work telephone numbers, the home address and an emergency contact person. Update any changes as they occur.***

10. Supervise smaller children attending extracurricular school activities, concerts or assemblies and especially athletic events. Although the school will provide law enforcement, crowd control and proper supervision, **the care of children attending an event is the responsibility of the parent.**

11. Please follow through with scheduled conferences and volunteering commitments. If a conflict arises, please notify the school.

For the purpose of limiting the liability of a school, Section 1003.31, Florida Statutes provides that students are considered under the control and supervision of the school when they are on the premises during a reasonable time before and after school and while attending or participating in a school-sponsored activity at the school site. Reasonable time is defined as 30 minutes before and after school or before the school activity is scheduled or actually begins or

CLASSROOM TEACHER'S ROLE

The teacher will inform every student of the classroom discipline plan to be used in that teacher's room. The plan will be compatible with the school plan and the District Code of Student Conduct. In accordance with the state board rules and general law, a teacher has the authority to control and discipline students in his or her classroom and in other places in which the teacher is assigned to be in charge of students. Pursuant to s. 1003.32 and in order to provide an orderly and safe learning environment for students, a teacher may:

1. Establish classroom rules of conduct.

2. A teacher shall designate an area for wireless communications devices during instructional time.

3. Establish and implement consequences, which are designed to change behavior, for infractions of classroom rules of conduct.

The classroom plan will include a series of steps with punishment increasing if the problem persists. The teacher will provide instruction regarding proper conduct, explaining the punishments for misconduct. The instruction will stress RESPECT. Interventions must include an attempt to contact the parent and may include:

1. When a student fails to follow the rules, the teacher will proceed through the steps listed in the room plan. Consequences may include withholding a privilege, isolation, counseling, detention, extra work, task assignment or parent conference.

2. If the misconduct is repeated, the teacher will attempt to contact the parent and record the result.

3. The teacher will refer the student's case to a social worker, a school nurse, a guidance counselor or the School Attendance Review Committee (SARC) to seek positive intervention.

4. If the classroom problem persists or the misconduct has become a major disruption, the teacher or staff member will complete a Highlands County District Schools Student Discipline Referral within Skyward and refer the student to an administrator who will determine the punishment and advise the teacher of the action taken.

5. Subject to law and to the rules of the District School Board, each teacher or other member of the staff of any school shall have such authority for the control and discipline of students as may be assigned to him or her by the principal or the principal's designated representative and shall keep good order in the classroom and in other places in which he or she is assigned to be in charge of students. Assist in enforcing school rules on school property, during school-sponsored transportation, and during school-sponsored activities.

6. Within the framework of this Code of Student Conduct, teachers and other instructional personnel shall have the authority to undertake any of the following alternatives in managing student behavior and ensuring the safety of all students in their classes and school.

7. May have disobedient, disrespectful, violent, abusive, uncontrollable, or disruptive students removed from the classroom for behavior management intervention.

8. May have violent, abusive, uncontrollable, or disruptive students directed to appropriate school or district school board personnel for information and assistance.

9. Request and receive information relating to the disposition of any referrals to administration for a violation of classroom rules of conduct or school rules.

10. Request and receive immediate assistance in classroom management if a student becomes uncontrollable or in the case of an emergency.

11. Request and receive training and other assistance to improve his or her skills in classroom management, violence prevention, conflict resolution, and related areas.

12. Press charges if there is a reason to believe that a crime has been committed on school property, during school-sponsored transportation, or during school-sponsored activities.

13. Use reasonable force, according to standards adopted by the State Board of Education, to protect himself or herself or others from injury.

PRINCIPAL'S ROLE

1. The administrators at each school will, with the assistance of faculty and staff, develop an approved School Discipline Plan based on this Code, the age of the student body and the school's philosophy. Emphasis will be placed on teaching ***respect.***

2. Principals have statutory power which permits their determining disciplinary action appropriate to student misconduct, (Section 1006.07, 1006.09, Florida Statutes). Principals must protect the student's rights of due process and appeal.

3. After determining that the student has violated the Code of Student Conduct, the principal shall respond either by employing the teacher's recommended consequence, or by imposing a more serious disciplinary action, if the student's overall behavioral history warrants it. If the principal determines that disciplinary action other than that recommended by the teacher is appropriate, the principal should consult with the teacher before taking disciplinary action. If the principal determines that the student has not violated the Code of Student Conduct, the principal may not impose any discipline. The principal shall notify the teacher of any decision regarding discipline, or lack thereof, and interventions provided to a student to address the behavior. If the principal deviates in any way from the teacher's recommendation, the principal must provide the reasons for any such deviation in writing to the teacher. The principal, or the principal's designee, shall give strong consideration to the recommendation for discipline made by a teacher, other member of the instructional staff or a bus driver when making a decision regarding student referral for discipline.

4. The principal, or the principal's designee, may recommend to the superintendent the expulsion of any student who has committed a serious breach of conduct, including, but not limited to, possession of firearm or weapon, willful disobedience, open defiance of authority of a member of his or her staff, violence against persons or property, threat or false report or any other act which substantially disrupts the orderly conduct of the school. Any recommendation of expulsion shall include a detailed report by the principal, or the principal's designated representative, on the alternative measures taken prior to the recommendation of expulsion or state why alternative measures were inappropriate, (Section 1006.09, Florida Statutes).

5. The principal, or the principal's designee, shall make a *good faith effort* to contact the student's parent or guardian by telephone to inform them of a decision to recommend expulsion for their child.

6. The principal, or the principal's designee, shall make a *good faith effort* to immediately inform a student's parent or guardian by telephone of a student's suspension and the reason for the suspension, (Section 1006.09, Florida Statutes).

7. The principal, or the principal's designee, shall make a *good faith effort* to contact the parent or guardian of a student who may be placed in personal or legal jeopardy due to interrogation by law enforcement. This does not include questions concerning any other matter pertaining to school or a school-related activity or event.

8. Principals must release a student to law enforcement officers when a warrant is presented for the student's arrest. In this case, the principal shall make a *good faith effort* to contact the parent or guardian.

9. Disciplinary decisions are based on the judgment of the individual administrator according to the details of each specific case.

10. The student's record may be considered. Punishment will be increasingly severe if rules are broken repeatedly or habitually. Repeated disruptive behavior may constitute "defiance of authority."

11. The principal is required to report certain infractions to law enforcement authorities and may press charges with the State Attorney if the violation warrants such action.

SCHOOL BUS OPERATOR

The principal or the principal's designee may delegate any disciplinary authority to school bus operators except for suspension of students from riding the bus.

AUTHORITY OF SCHOOL BUS OPERATORS (Section 1006.10, Florida Statutes)

1. The school bus operator shall require order and good behavior by all students being transported on school buses.

2. The district school board shall require a system of progressive discipline of transported students for actions which are prohibited by the Code of Student Conduct. Disciplinary actions, including suspension of students from riding on district school board owned or contracted school buses, shall be subject to district School Board policies and procedures and may be imposed by the principal or the principal's designee. The principal or the principal's designee may delegate any disciplinary authority to school bus operators except for suspension of students from riding the bus.

3. The school bus operator shall control students during the time students are on the school bus, but shall not have such authority when students are waiting at the school bus stop or when students are en route to or from the school bus stop except when the bus is present at the bus stop.

4. If an emergency should develop due to the conduct of students on the bus, the bus operator may take such steps as are immediately necessary to protect the students on the bus.

5. School bus operators shall not be required to operate a bus under conditions in which one or more students pose a clear and present danger to the safety of the operator, other students, or the safety of the bus while in operation. The district school board shall have measures in place designed to protect the school bus operator from threats or physical injury from students.

6. District school boards may use transportation, school safety, or FEFP funds to provide added security for buses transporting disruptive or delinquent students to and from school or other educational activities.

7. In the case of a student having engaged in violent or blatantly unsafe actions while riding the school bus, the district school board shall take corrective measures to ensure, to the extent feasible, that such actions are not repeated prior to reassigning the student to the bus.

The school bus operator has no authority to control students while they are waiting at the bus stop or when they are on their way to or from the bus stop, except when the bus is present at the bus stop.

STAFF MEMBER'S ROLE FOR DISCIPLINE OUTSIDE THE CLASSROOM

All school personnel shall be informed and are responsible for all school board administrative rules concerning discipline. All school personnel, including teachers, custodians, paraprofessionals, school volunteers, cafeteria workers, office staff, etc., shall become involved in the discipline process anywhere on campus or at school functions off campus. Verbal warning, verbal reprimands and written discipline referrals are the normal procedures used to handle discipline problems outside the classroom.

Severe misbehavior observed outside the classroom will be referred directly to an administrator.

SCHOOL AUTHORITIES AND RESOURCE OFFICERS

The School Board of Highlands County, the Sheriff's Office of Highlands County, and the Sebring, and Lake Placid City Police Departments have formed a collaborative, cooperative relationship to safeguard our students, staff and schools. To this end, we wish to emphasize the following procedural guidelines in the event School Resource Officers become actively involved in criminal investigations on school campuses.

Investigative procedures may become necessary in those felony and/or misdemeanor cases occurring on school campuses or at school-sponsored activities which are not best handled solely through school disciplinary procedure. All such offenses which are criminal in nature shall be reported to law enforcement. School officials are additionally expected to cooperate with law enforcement in a reasonable and prudent manner in the investigation of criminal offenses which involve students but which have occurred outside school-related events.

Our expectation is that school administrators and law enforcement officers respect the authority of each agency's function and maintain continual communication for our mutual benefit as well as the benefit of our students.

COMPULSORY SCHOOL ATTENDANCE

Florida Statute 1003.24 places the responsibility on parents and legal guardians for school attendance of children. It is essential that our children receive an education. Failure to attend school in a regular and timely fashion hinders the education process. Truancy and poor school performance have a direct relationship to juvenile delinquency and destructive behavior. A disproportionate percentage of juvenile crime occurs when juveniles should be in school.

Regular school attendance is required for students between the ages of 6 and 16. A child must be enrolled in school for the entire school year if he or she attains the age of six years by February 1 of that school year. (Section 1003.21 Florida Statutes).

1. Attendance in a public school supported by public funds;
2. Attendance in a parochial, religious or denominational school;
3. Attendance in a private school supported by tuition or endowments; or
4. Attendance in a home education program as defined in the Florida Statute 1000.21;
5. Attendance in a private tutoring program that meets the requirements of chapter1002.

Florida Statute 1003.21 states that: “A student who attains the age of 16 years during the school year is not subject to compulsory school attendance beyond the date upon which he or she attains that **age if the student files a formal declaration of intent to terminate school enrollment** with the district school board.” This form, MIS 19.30 can be accessed at all secondary schools in the District.

Students are expected to attend class regularly and to be on time in order to benefit the most from the instructional program. Any student who is absent will be expected to make up all work missed. Grades will be recorded when appropriate. It is the responsibility of the student and his/her parent to arrange for the makeup work with each teacher involved after the student’s return to class. It is the teacher’s responsibility to provide and accept assignments within a time frame prescribed by the principal, not to exceed two weeks.

In compliance with Florida School Laws, The School Board of Highlands County recognizes excused absences as those resulting from:

1. Personal illness of the pupil (medical evidence may be required by the principal);
2. Court appearance of the pupil (summons required);
3. Medical appointment of the pupil (a medical statement may be required);
4. Religious holiday;
5. Death in the immediate family;
6. Approved school activity (absences recorded but not reported);
7. Attendance at a center under Children and Families Services supervision;
8. Insurmountable conditions (permission by principal may be required).
9. Pregnancy related issues (see also po5751)
10. Appointments for a therapy service provided by a licensed health care practitioner or behavior analyst certified pursuant to Florida law for the treatment of autism spectrum disorder including, but not limited to, applied behavioral analysis, speech therapy and occupational therapy.

Written notice stating the reason for the student’s absence must be presented to school personnel. Absences not documented in writing by the parent/guardian and not included in the excuses listed above shall be UNEXCUSED. If a student is continuously sick and repeatedly absent from school, the student must be under the supervision of a physician in order to receive an excuse from attendance.

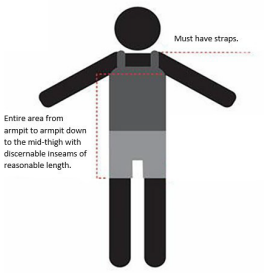
Pre-Arranged Absence Policy: The purpose of a pre-arranged absence is to allow absences for reasons normally unexcused. Pre-arranged absence forms (MIS 01.12) are available in the school office and one should be submitted as far in advance as possible, but not less than three days prior to the requested date.
Students must present a signed pre-arranged absence form to the principal or designee. During the initial review, an administrator/designee will consider the student’s attendance, grades, and discipline. Upon initial review, the form will be returned to the student to obtain teachers’ signatures, and comments/assignments (secondary schools only). Once teachers’ signatures are obtained, it will be resubmitted to the administrator/designee for final approval or disapproval.

Students are responsible for turning in assigned work within a reasonable amount of time. No pre-arranged absences will be granted during semester exams or state testing.

Each school will have a School Attendance Review Committee (SARC) that meets regularly to address attendance. Guidelines are provided in The School Board of Highlands County Code of Student Conduct under absenteeism. The SARC may refer cases to the local Children In Need of Service/Families in Need of Services (CINS/FINS). The CINS/FINS provider has the authority, under Florida law, to file charges against the parent/guardian, student and refer the family for intervention services. (Section 1003.27, Florida Statutes).

Each public-school principal or designee shall notify the district school board of each minor under its jurisdiction who accumulates 15 unexcused absences in a period of 90 calendar days. For appropriate-aged middle and high school students, the superintendent must provide the Department of Highway Safety and Motor Vehicles the legal name, sex, date of birth and Social Security number of each minor who has been

reported and fails to satisfy the school attendance requirements of Section 322.091, Florida Statutes. The Department of Highway Safety and Motor Vehicles may not issue a driver's license or learner's driver's license and shall suspend any previously issued driver's license.



STUDENT DRESS CODE

School Board po5511 - Statutory Authority: 1001.41; 1001.42, Florida Statutes

(1) The School Board recognizes that each student's mode of dress and grooming is a manifestation of personal style and individual preference. The Board will not interfere with the right of students and their parents to make decisions regarding their appearance, except when their choices interfere with the educational program of the schools.

A. Lower Garments

1. Pants shall conform to the build and stature of the student, shall be worn at the waist, and not extend below the heel of the shoe in length (Tights, spandex, leggings, bike shorts, etc., are only permitted so long as the shirt, skirt or other garment reaches mid-thigh or below)

2. Undergarments must be worn and shall not be visible. (Sports bras are considered undergarments)

3. Dresses and skirts must reach mid-thigh or below in length with the waistband of skirts worn at waist level.

4. Shorts must have clearly discernible inseams of reasonable length and cover the buttocks. Short shorts are prohibited.

5. Garments must be of a length and fit that are suitable to the build and stature of the student.

B. Footwear

Students must wear shoes that are safe and appropriate for the learning environment.

C. Accessories

1. Clothing, jewelry, and accessories shall not convey messages that are crude; vulgar/profane; violent/death-oriented, gang-related; sexually suggestive; racially disruptive; and/or promoting alcohol, drugs, tobacco or weapons.

2. Dog collars, tongue rings, wallet chains, large hair picks, chains that connect one part of the body to another, or other jewelry/accessories that pose a safety concern for the student or others shall be prohibited.

3. Students are not permitted to wear hats, hoodies or other head coverage unless medically needed or for religious exemptions, school-sponsored events, or Board-approved fundraisers.

4. Students are not permitted to bring blankets to school.

(2) In addition to the minimum standards herein established, each school may enhance upon these guidelines utilizing faculty, staff, parent and student input as appropriate. Provision for exception based upon religion shall be made at school sites. Please refer to the Student Handbook for individual school rules.

(3) School-based administrators have the final authority to determine when personal appearance and dress do not meet Board and school standards and also have the authority to take appropriate action.

INAPPROPRIATE OBJECTS

The following items are inappropriate and shall not be brought on any School Board of Highlands County property:
Airsoft guns, BB guns, Nerf guns, Orbeez guns, sling shots, pocket knife, kitchen knife, lighter, or any other object the school administration feels could cause harm to another.
Possession of any of these objects on campus will result in discipline action and potentially criminal charges.

SECTION III: PROCEDURAL GUIDELINES

CODE VIOLATIONS

Across the nation and the state, a rash of serious incidents, accidents and injuries has awakened educators, parents and law enforcement officials to the need for more emphasis on maintaining order in the schools. During 1988-89, The School Board of Highlands County enacted and enforced a strong Code of Student Conduct designed to teach children and youth to abide by the rules.

The basis of the strict Code is the concept of ***RESPECT*** – respect for others, for property, for authority and for self.

Changes have been made each year since 1988, but the basic concepts are the same. Each **STUDENT** is responsible for his own behavior and for knowing the rules of his own school; **TEACHERS** are expected to handle minor misconduct thus avoiding referral to the principal; and **PARENTS/GUARDIANS** are to be involved if possible. The violations listed in this book are considered serious and will be enforced by school administrators and the Board as consistently as possible.

Unacceptable behaviors are defined uniformly, but the punishment varies depending on the degree of misconduct, the age, record of the student and the judgment of the principal. Any student who accumulates an **excessive number of Out-of-School Suspension (OSS) Disciplinary Referrals,** shall be recommended for Placement at the District's Alternative Discipline Program.

Steps for excessive number of Out-of-School Suspension Referrals:

1. 3 or more referrals resulting in OSS
    - Principal's warning letter sent home
        - Attached discipline history
        - List of interventions used
2. 4 or more referrals resulting in OSS
    - District warning letter sent home
        - Present/past years' discipline history
        - List of interventions used
3. 5 or more referrals resulting in OSS
    - The school may recommend the student for expulsion.

The School Board of Highlands County has authority to regulate all conduct on school property, on school-sponsored transportation, field trips, and extracurricular activities or at any school-related activity or function. This Code of Student Conduct is applicable to all conduct on school property, on school - sponsored transportation and at all school-related functions or activities whether during school hours or otherwise.

Discipline Procedures for Students with Disabilities

The district complies with all federal and state laws pertaining to students with disabilities. Students with disabilities may be subjected to short-term or long-term removals depending on the disciplinary infraction of the Code of Student Conduct. A short-term removal is one in which a student with a disability is removed from a school up to ten (10) school days within a school year. Short-term removals do not require the school to provide services identified in the student's Individualized Education Plan (IEP) or Section 504 plan, or to conduct a manifestation determination meeting.

A long-term removal is one in which a student with a disability:

- is suspended for a period of more than ten (10) consecutive days, or
- has been suspended for more than ten (10) cumulative days in the school year, or
- is subject to expulsion.

A long-term removal of a student with a disability requires the following:

- The school will schedule a manifestation determination meeting with the relevant members of the IEP or Section 504 team including the parent and student. At this meeting, the team reviews the student's IEP or Section 504 plan, the student's file, teacher observations, and relevant information provided by the student and student's parents. Following this review, the IEP or Section 504 team shall determine whether the student's behavior was a manifestation of his/her disability.
- If the behavior is not a manifestation of the student's disability, then the student may be disciplined in the same manner as non-disabled students, including removal to an alternative education setting or expulsion with services.
- If the behavior is a manifestation of the student's disability, the District shall conduct a functional behavioral assessment (FBA) and implement a behavior intervention plan (BIP) for the student to address the behavior giving rise to discipline. The student shall be returned to his/her original placement unless the parent and District agree to different placement as a behavioral intervention. A student with a disability may be removed to an interim alternative educational setting for not more than forty five (45) school days without regard to whether the student's behavior is determined to be a manifestation of his/her disability if the student: (a) carries a weapon to or possesses a weapon at school, on school premises, or at a school function; (b) knowingly possesses or uses illegal drugs at school, or solicits the sale of a controlled substance while at school, on school premises, or at a school function; or (c) has inflicted serious bodily injury upon another person while at school, on school premises, or at a school function.

Additional requirements for the suspension and expulsion of students with disabilities are detailed in the District's Exceptional Student Education (ESE) Policies and Procedures, and Florida Department of Education Rule 6A-6.03312. Any time a significant change in placement (such as an exclusion of more than ten (10) consecutive days) is being considered, the parent(s) or guardian of a student with a disability shall be provided a copy of the notice of procedural safeguards for parents of students with disabilities and written notice, or the procedural safeguards and parent rights for Section 504.

REMOVING A STUDENT FROM CLASS

1. A teacher may send a student to the principal's office to maintain effective discipline in the classroom. The principal shall respond by employing appropriate discipline-management techniques consistent with the Code of Student Conduct under Section 1006.07, Florida Statutes.

2. A teacher may remove from class a student whose behavior the teacher determines to interfere with the teacher's ability to communicate effectively with the students in the class or with the ability of the student's classmates to learn.

3. If a teacher removes a student from class under Section 1003.32, Florida Statutes, subsection (2), the principal may place the student in another appropriate classroom, in Individualized Study Services (ISS) suspension, or in an alternative education program as provided by Section 1003.53, Florida Statutes, or the principal may recommend the student for Out-of-School Suspension (OSS) or expulsion, as appropriate. The student may be prohibited from attending or participating in school-sponsored or school-related

activities.

The principal may not return the student to that teacher's class without the teacher's consent unless the committee established under Section 1003.32, Florida Statutes, determines that such placement is the best or only available alternative. The teacher and the placement review committee must render decisions within five days of the removal of the student from the classroom.

4. Placement Review Committee, established under Section 1003.32, Florida Statutes:

   Each school shall establish a committee to determine placement of a student when a teacher withholds consent to the return of a student to the teacher's class. A decision must be rendered by the teacher and the Placement Review Committee within five days of the removal of the student from the classroom. Committee membership must include at least the following:

   a) Two teachers, one selected by the school's faculty and one selected by the teacher, who have removed the student, and

   b) One member from the school's staff who is selected by the principal. The teacher who withheld consent to readmitting the student may not serve on the committee.

5. Any teacher who removes 25 percent of the students from any class shall be required to complete professional development to improve classroom management skills.

CLASSROOM EXCLUSION SERVICES (CES)

Schools may develop systems of Classroom Exclusion Services (CES). Classroom Exclusion Services (CES) will be assigned by the principal or designee. (CES) will consist of supervised isolation for any length of the school day. Students assigned (CES) may not participate in or attend any school-sponsored activity the day or days they are assigned to Classroom Exclusion Services (CES).

SCHOOL SERVICE WORK (SER)

Schools may develop a School Service Work Program (SER). School Service Work (SER) will be assigned by the principal or designee and will consist of supervised school service work after school for a designated amount of time. Students will be completing assigned work projects and/or assisting with school beautification on school campus. If a student does not serve SER and they were in attendance during the school day, the student is automatically in ISS for the following day. Students assigned to School Service Work (SER) may participate in or attend any school-sponsored activity the day or days they are assigned to School Service Work (SER).

INDIVIDUALIZED STUDY SERVICES (ISS)

Schools may develop systems of Individualized Study Services (ISS). Individualized Study Services(ISS) will be assigned by the principal or designee and will consist of supervised isolation for the length of the school day.

Students will be allowed to complete work through assignments provided by the student's teacher(s). Students assigned to Individualized Study Services (ISS) may not participate in or attend any school-sponsored activity the day or days they are assigned to Individualized Study Services (ISS).

GUIDELINES FOR OUT-OF-SCHOOL SUSPENSION (OSS)

The principal or designee may suspend a student for up to ten (10) days. A reasonable attempt should be made to inform the parent or guardian by telephone for each suspension and the reasons for it. A written report shall be made within 24 hours and a copy delivered to the parent by any of the following methods: U.S. mail, email, hand delivery, or sent home with the student. A written report shall also be provided within 24 hours to the Superintendent. The length and conditions of the suspension may vary depending on the seriousness of the misconduct and the student's record.

Principals of elementary schools may permit parents of students who are in grades K-5 to come to school and spend a day observing their child in the classroom instead of having their child serve

a one day Out-of-School Suspension (OSS). Parents must notify the principal, in advance, by calling the school when they receive notice of the Out-of-School Suspension (OSS) or by coming to school with their child and reporting directly to the principal's office so that arrangements may be made for the visit. This option may be used a maximum of four times during the school year. The visit must be within three (3) school days from the date the child was suspended. If the parents must leave school before the school day is over, their child must leave with them.

Assignments missed during OSS will be available for the parent/guardian to pick up within 48 hours of the suspension. For OSS 2 days or less, the student will have the equal number of days of suspension to turn in assignments. For OSS 3 days or longer, assignments are due upon return to school.

While suspended, a student may not participate in or attend any school-sponsored activity.

PENDING EXPULSION: If, and only if, School Board action on an expulsion recommendation is pending and the 10-day suspension period would expire before the next regular or special meeting of the School Board, the Superintendent may extend the suspension through the date of the next regular or special meeting of the School Board. At such meeting, if the expulsion recommendation is not heard due to a continuance for an administrative hearing requested by the parent or the parent's attorney, or for other good cause show, the School Board may continue such suspension until the next regular or special meeting of the School Board scheduled to hear the expulsion matter. Attendance at The Academy during such periods of suspension may be required if so, directed by the School Board.

DISCIPLINE REVIEW PROCEDURES

THE PRINCIPAL'S DECISION IN CASES INVOLVING DETENTION, INDIVIDUALIZED STUDY SERVICES, OR PARTICIPATION IN EXTRACURRICULAR ACTIVITIES OR EVENTS IS FINAL.

STUDENTS HAVE THE RIGHT:

- to know what the charges are against them (what rule has been broken.)
- to give an explanation of their action and to present their view of the incident.

Students who believe that a disciplinary action is unfair may follow the review procedure. If the student's review is successful, any record of the punishment will be amended in the student's file. **Punishment will not be withheld during the review process.**

THESE STEPS ARE REQUIRED FOR ALL REVIEWS

Step 1. Informal. Students should take their complaint(s) to the person(s) involved and try to solve the problem informally. If unsuccessful, they may move to Step 2.

Step 2. Within five days of the incident, the student (or parent) must give the principal a *written* and signed statement of request for review. A copy of this written request for review is to be given to the person who made the referral. The written request should describe the problem and give all the facts. The student may offer a solution to the problem. The principal will review the case and make a decision within three school days after receipt of the written request for review. The principal's decision in cases involving detention, Individualized Study Services, or participation in extracurricular activities or events is final.

Step 3. If the punishment being reviewed is an Out-of-School Suspension and the principal's decision is deemed unacceptable, the student or parent may forward the written request for review and the principal's written response to the Superintendent with a written statement. The student/parent shall send a copy of the request for review to the principal. A request for review must be filed within five school days after receipt of the principal's decision. The Superintendent or the Superintendent's designee will act on the request within five school days after receiving the documents. The Superintendent's decision will be final in all discipline cases with the exception of expulsions. The School Board makes all final determinations on whether or not a student will be expelled.

EXPULSION GUIDELINES

Florida Statutes define expulsion as "the removal of the right and obligation of a student to attend a public school under conditions set by the District School Board, and for a period of time not to exceed the remainder of the term or school year and one additional year of attendance", §1003.01. Florida Statutes. Students may not be readmitted through other state agencies.

EXPULSION PROCEDURES

1) Upon commission of an offense for which expulsion is recommended, the student shall receive a written discipline referral from the principal or designee indicating that expulsion of the student will be recommended to the Superintendent. The student shall at that time be suspended out of school for up to ten (10) school days.

2) The principal or designee shall recommend, in writing, to the Superintendent that the Superintendent recommend expulsion of the student to the School Board. Any recommendation of expulsion shall include a detailed report by the principal or the principal's designee on the alternative measures taken prior to the recommendation of expulsion.

3) If the Superintendent intends to recommend expulsion, the Superintendent, or his representative, shall, within five (5) business days from the receipt of the Principal's recommendation, provide the parents a written statement of the recommendation of expulsion, a statement of the charges against the student, a statement advising the parents of the right to a hearing on the matter pursuant to §§120.569 and 120.57(2), Florida Statutes, and a statement that a request for such hearing must be made, in writing, and delivered prior to the Board's decision on the recommended expulsion. This provision shall be accomplished by certified mail, hand delivery or in person.

   Notification shall be complete at the time of personal service or at the time of mailing if certified mail is utilized. **It shall be the absolute responsibility of the parent to accept delivery of certified mail.**

4) The School Board's designee shall schedule an informal meeting with the student's parents to discuss the charges and potential outcomes. Both the student and school officials may present their respective versions of the facts. The student or parents may, at their own cost, have legal counsel present to advise them at the meeting. In an appropriate case, the School Board's designee may extend to the parents and student an offer to participate in a district alternative discipline program. Any agreement reached at the informal meeting is subject to Board approval.

5) Should the parents be offered and accept an agreement as to the student's participation in a district alternative discipline program, the expulsion shall be forwarded to the Board with the additional recommendation that the student be allowed to complete the alternative program. The item shall be placed on the Board's agenda for consideration at the next regular meeting. The Board shall consider and approve or reject the recommendation for expulsion and the alternative discipline program agreement, if any.

6) Should the parents disagree with the proposed expulsion (without request for a hearing), or refuse to sign

an offer for the student to participate in a district alternative discipline program, the expulsion shall be forwarded to the Board. The Board shall consider the matter as it would any other item on the action agenda.

7) Should the parents disagree with the recommendation of the Superintendent and request a formal hearing, the matter shall be referred for an expulsion hearing at a separately scheduled meeting, where the Board shall take such action as it deems appropriate. **Merely "contesting" the proposed expulsion is NOT a request for a formal hearing pursuant to 120.569 and 120.57(2), Florida Statutes.** A request for formal hearing must be made, in writing, and received by the Superintendent within ten (10) days of the informal meeting with the Board's designee as referenced in Section H: 4 (Expulsion Guidelines.)

8) Any student expelled for a firearm or weapon as defined in chapter 790 or made a threat or false report as defined by s. 790.162 and 790.163 shall be referred for mental health services.

9) A recommendation will be made that any student who commits an expellable offense during their last semester will not be allowed to walk at graduation.

EXPULSION HEARINGS

1) Should a parent timely submit a written request for formal hearing, a formal hearing shall be conducted pursuant to § 120.569, Florida Statutes, and the appropriate subsection of § 120.57, Florida Statutes. The provisions of Chapter 28-106, Florida Administrative Code, sets out the procedures governing the formal hearing.

2) Except for good cause, factual matters alleged in the recommendation for expulsion, but not denied in the request for hearing, shall be presumed admitted. Failure to raise a particular defense in writing will be considered a waiver of such defense.

3) All parties shall have an opportunity to present evidence and argument on all issues, to conduct cross-examination, to submit rebuttal evidence and to be represented by an attorney.

4) The School Board or hearing officer will conduct the hearing and the Board shall review the findings and adopt an order. The order will be delivered, in writing, to the student's parent or guardian.

5) The School Board shall accurately and completely preserve all testimony in the proceeding by tape recording. On the request of any party, the School Board shall make a full or partial transcript available at actual cost, inclusive of transcription by a court reporter if deemed appropriate, payable in advance of transcription by the requesting party.

6) Either party may, at its own cost, make arrangements for and provide a court reporter to attend the hearing.

7) A party adversely affected by final action is entitled to judicial review. All proceedings for review shall be instituted by filing an appropriate petition in the Sixth District Court of Appeal and review shall be conducted in accordance with the Florida Rules of Appellate Procedure.

DISTRICT ALTERNATIVE DISCIPLINE PROGRAM

1) The Board or its designee may offer a student the opportunity to have his or her expulsion held in abeyance and/or expunged through successful completion of a district alternative discipline program.

2) Participation in a district alternative discipline program is a privilege, not a right. Offers to participate in a district alternative discipline program are extended at the Superintendent's recommendation. Any agreement involving a recommendation for expulsion and a recommendation to participate in a district

alternative discipline program reached between the Superintendent (or designee) , the student, and parent(s) is subject to Board approval.

3) Students assigned to the district alternative programs by a written stipulation with the Superintendent (or designee) will have no gap between grades assigned by the sending school and those earned in the program.

4) If a student's period of expulsion is held in abeyance, then upon Superintendent's recommendation to the Board that the student has successfully completed a district alternative discipline program, the Board will consider the recommendation and the student's expulsion may thereafter be expunged. If the recommendation of successful completion is approved, the student shall be permitted to return to his or her approved school and the expulsion shall thereafter be deleted from the student's discipline record. If a student whose period of expulsion was held in abeyance does not successfully complete the program, then the expulsion goes through at end of expulsion period.

The following agreement is required to be signed by the parent and the student upon registration at the academy and establishes the expectation of the students enrolling with the Highlands Success Academy.

The School Board of Highlands County
Highlands Success Academy

This agreement outlines the expectations of students enrolled the Highlands Success Academy. Expectations are reviewed with students as per their original agreement and then every nine weeks thereafter. These expectations will determine if a student is eligible for early return.

Students are expected to:

A. Attendance

1. Attend the Academy a minimum of one full grading period.
2. Be present 90% or more. Excused absences are excluded for the purpose of the 90% calculation. Please review School board Policy 5200 regarding Attendance requirements.
3. Attendance records are reviewed according to SARC procedures.

Note: Review and sign attendance policy with parent/guardian and student.

B. Discipline

- Have no more than 2 discipline referrals or no more than one discipline referral resulting in OSS.

Note: Students who violate the Code of Student Conduct with an alcohol or drug infraction will be referred for counseling.

C. Work Habits

- Display satisfactory work habits. The student's work habits will be reviewed and considered to determine successful completion (i.e., assignment completion, engagement, participation, etc.)
-

Note: Each student with an active IEP or 504 Plan will be reviewed on an individual basis. The student's unique needs and circumstances will be carefully considered to ensure they are placed in the Least Restrictive Environment (LRE) while effectively working toward their IEP goals. An IEP team will convene to determine the student's Free Appropriate Public Education (FAPE) and make decisions that best support their educational progress.

Student Name:_____ Date: _____

Parent Name:_____ Date: _____

School Administrator Name:_____ Date: _____

INVESTIGATIONS OF DISCIPLINARY AND CRIMINAL LAW VIOLATIONS

Parent (as defined by 1000.21(5) Florida Statute) Notification per School Board po5540

A. Administrative Investigations: If a student is suspected of violating a provision of the Code of Student Conduct that does not also constitute a criminal offense, a school official or law enforcement agency may question the student without first contacting the parent.

B. Criminal Investigations: If a student is a suspect in a criminal investigation by a law enforcement agency that may result in arrest or criminal charges, the principal, or designee, shall make a reasonable effort to contact the parent of the student before a law enforcement agency begins questioning.

1. If the principal, or designee, is successful in contacting the parent, the law enforcement agency shall allow the parent to be present during questioning.

2. If the principal, or designee, is unsuccessful in contacting the parent, the law enforcement agency may proceed with questioning the student.

3. When at all practical, the parent, principal, or principal's designee should be present during interrogation of a student who is suspected of a criminal offense, unless waived by the parent or student.

C. Victim or Witness Interviews: If a student is a victim or a witness, a school official or law enforcement agency may question the student without first contacting the parent.

1. If the investigation involves child abuse or neglect by the parent or legal guardian:
   a) The law enforcement agency or Department of Children and Family (DCF) may decide who can be present during the interview.
   b) The law enforcement agency or DCF may allow a school official who is known by the student to be present only if:
      1.) The school official could enhance the success of the interview by his/her presence; and
      2.) The student requests or consents.

2. A law enforcement agency or DCF may interview a student.
   a) The law enforcement agency or DCF must sign an Interview/Release to DCF/Law form.

3. The student's parent shall not be notified in cases where a law enforcement agency or DCF are investigating allegations of child abuse or neglect by the parent.

4. If, at any point, a student who was called for questioning as a victim or witness becomes a suspect, all interrogation by a law enforcement agency shall cease until a reasonable attempt to notify the parent is made by the principal, or designee.

D. Removal of a Student from School Property**:**

1. If a student is being interviewed as a witness, the law enforcement agency shall not remove the student from school property prior to obtaining:
   a) A subpoena;
   b) Parent or legal guardian consent; or
   c) Principal, or designee, consent

2. If the student is subject to arrest, with or without a warrant, the law enforcement agency may remove the student without parental consent or the consent of school officials.
   a) The principal, or designee, will make a reasonable attempt to contact the parent before the student is removed or as soon thereafter as possible.

3. If the student needs to be taken into protective custody involving an investigation of child abuse or neglect by the parent, or legal guardians, the law enforcement agency or DCF may remove the student without parental consent or the consent of school officials.

4. Anytime a student is taken from school by a law enforcement agency or DCF, the officer must sign a Release to Law Enforcement Agency/DCF form.

E. Parent or Legal Guardian Notification: All notification efforts shall be documented by the principal, or designee.

1. If a parent or legal guardian cannot be reached, the principal, or designee, shall attempt to contact the student's emergency contact in an effort to notify the parent or legal guardian.

WARNING TO STUDENTS

1. GANG RELATED:

If the violation of the Code is gang related, the principal shall impose a more severe discipline/punishment than the minimum consequence for the offense.

2. FELONY CHARGES:

In accordance with Section 1006.09, Florida Statutes, if you are charged by the State attorney with committing a crime off-campus that is a felony, or would be a felony if committed by an adult, you might be removed from school until your guilt or innocence is decided by the court**.** In accordance with Section 1006.15, Florida Statutes, a student must maintain satisfactory conduct and, if a student is convicted of, or is found to have committed, a felony or a delinquent act which would have been a felony if committed by an adult, regardless of whether adjudication is withheld, the student's participation in extracurricular activities shall be prohibited for a period of a calendar year from the date of adjudication.

SEARCHES

1. Random Searches for Weapons and Drugs

Students and their property are subject to random searches by school officials using any appropriate means (metal detectors, dogs, etc.). At various times throughout the school year, law enforcement may be asked to search the entire school campus, including all buildings and cars in the parking lot, with dogs that are trained to find marijuana and other illegal drugs or paraphernalia. Items that are prohibited by this Code, which are found during these searches, will be used as evidence to discipline students according to the appropriate section of this Code

2. Vehicle Searches

Student vehicles could contain items or substances that are not permitted on school property. All vehicles parked on School Board property or at school events are subject to search by administrators or designee, teachers and/or School Resource Officers, if the Officer is directed to do so by a school administrator. The School Resource Officer will search without orders from the administration if the School Resource Officer has probable cause.

Students who are found to possess items otherwise prohibited by this Code of Student Conduct in vehicles under their control shall immediately remove said vehicle from School Board property (or return from school event) and shall not be permitted to operate or park any vehicles on School Board property for the remainder of the school year or for the duration of any period of expulsion.

Driving a vehicle to school is a privilege that can be revoked.

3. Search of Person, Property or School Locker

The School Board of Highlands County endeavors to ensure a safe environment for students. School administrators and school employees act in place of parents or guardians while students are under their supervision and will conduct searches of students, student lockers, their personal property including cell phones/electronic devices and school property such as electronic devices, if they have reasonable suspicion or probable cause to believe they may possess any item that is prohibited or used to violate Board rules or policy.

Students, either on their person or in their personal property, may improperly be in possession of items or substances that are not permitted on school property, on school-sponsored transportation, or at school-sponsored activities or functions. Students, their personal property, including cell phones/electronic devices or their school lockers are subject to search by administrators or designee, teachers, or School Resource Officers if the Officer is directed to do so by a school administrator upon reasonable suspicion that a prohibited item may be possessed. **Any preventing/interfering with a search will result in punishment up to the level designated for the suspected Code of Student Conduct infraction.** The School Resource Officer will search without orders from the administration if the School Resource Officer has probable cause. Any search of a student's personal belongings, including a purse, backpack, or bookbag, must be conducted discreetly to maintain the privacy of the student's personal items within such belongings. Personal items that are not prohibited on school grounds must be immediately returned to the student's personal belongings.

SCHOOL BUS GUIDELINES

We believe all students can behave appropriately and safely while riding on a school bus. We will not tolerate a student stopping a bus operator from doing their job or preventing other students from having safe transportation. The District makes the following commitments:

1. To ensure the safe travel of their students during the portions of each trip to and from school and home when the students are not under the custody and control of the school district, including during each trip to and from home and the assigned bus stop when the school district provides bus transportation.

2. To ensure that students ride only in their assigned school buses and get off only at assigned bus stops, except when the district has approved alternative buses or arrangements.

3. To ensure students are aware of and follow the Districts Code of Student Conduct while they are on the bus.

4. To ensure that, when the physical disability of the student renders the student unable to get on and off the bus without assistance, the parent or guardian provides the necessary assistance to help the student get on and off at the bus stop, as required by District policy or the student's individual educational plan.

5. Parents/guardians are not allowed on school buses unless authorized by the transportation department.

Video surveillance cameras may be operating on school buses at any time. Students' pictures and conversations may be recorded. Surveillance tapes are considered confidential student records and, as such, are for use by district staff and will not be released to third parties except as provided by Florida Statutes.

RIDING A SCHOOL BUS IS A PRIVILEGE. SERIOUS OR REPEATED MISCONDUCT WILL RESULT IN SUSPENSION FROM THE BUS AND PUNISHMENT FOR THE MISCONDUCT USING THIS CODE OF STUDENT CONDUCT. *Bus operators report rule violations to school administrators. School administrators review such reports and determine appropriate action based upon this Code of Student Conduct. See Chart of Infractions – Page 49-50*

Misconduct on the bus will be considered the same as misconduct at school or on the school premises and will be handled by the school administrator in the same manner as on campus. No firearms, knives, or weapons of any kind may be brought to school or on board the school bus. Students or parents will pay for any damages/vandalism deliberately inflicted to the bus by students. Although all school rules apply on the bus, there are additional special rules due to the nature of bus transportation.

PERSONAL RESPECT CONCEPTS

The following personal conduct is expected of students:

No pushing, no hitting, no threats, no name-calling, no bullying, no cruel humor and no put-downs. Listen to the instructions of adults in charge; treat every person with respect and take responsibility for your own.

SAFETY INSTRUCTIONS FOR STUDENTS RIDING BUSES

1. *Stand off the roadway while waiting for the bus. Walk 10 feet in front of the bus, wait for operator's signal before crossing road.*

2. *Be on time – the bus cannot wait for tardy students.*

3. *Students must board and leave bus at their regular stop location unless student has prior written request from parent and approved by principal.*

4. *Rules of classroom conduct are to be observed, provided that ordinary conversation may be allowed.*

5. *No animal (dead or alive), glass or glass containers, sharp objects, ball bats, batons, radios or drumsticks will be allowed. Electronic communication devices must be turned off and put away.*

6. *Large objects which interfere with the seating or safety of others will not be permitted on the bus (i.e., large band instruments, over-sized backpacks, duffel bags, rolling luggage, skate boards, inflated balloons, large project boards, drill rifles or drill flags.) Any item or personal property prohibited by this Code or by specific school direction WILL NOT be permitted on the bus.*

7. **Sealable water containers must be stored in the student's backpack/bookbag.**

School bus operators, attendants, and other Transportation Department personnel may conduct searches of students, including their personal property, while riding on school buses if reasonable suspicion of illegal activity exists.

SCHOOL BUS STOP SAFETY SUGGESTIONS

1. Parents should ensure that, if possible, an adult waits with children at school bus stops (not always possible with one parent families or where both parents work), but something could be worked out with all parents of children at the bus stop to be there on a rotating basis.
2. Know the path your child takes to and from their home to the school bus stop.
3. Avoid short cuts through woods, alleys, parks, or other areas where they could be alone.
4. Identify safe houses along the way that your child could run to or into for help if needed.
5. Ensure your child does not have their name on their backpack, etc., as this would enable a potential abductor to call out to the child byname.
6. If your child feels concerned for their safety, they should always tell their parents and the bus driver of any such concern.
7. If approached on the way to or from the bus stop or at the bus stop, tell your parents, the bus driver, and school officials.
8. Report any suspicious vehicle, writing down the license plate number and providing it to school and law enforcement officials.
9. Stand away from any vehicle that stops near the bus stop and do not allow yourself to come close to or enter the vehicle of someone you don't want to.
10. Run from anyone displaying a weapon, this while throwing books, yelling, and making as much noise as they can. Under no circumstances go with an abductor. Kick, bite, but no matter what the threat, do not go along with your kidnapper. Once he takes you away, your chances of survival greatly diminish.

SECTION IV: CHART OF INFRACTIONS

The following chart is a list of the most common serious infractions but does not include every possible violation. Please note that the **MINIMUM CONSEQUENCES** vary according to the grade level of the student. When a punishment is listed as "principal's discretion," such term shall include parental conferences, student counseling, detention, ISS, or such other punishments of a relatively non-serious nature. Offenses by pre-kindergarten students shall be handled on an individual basis at the discretion of the principal based on the severity of the infraction. Violent or disruptive students may be referred for mental health services.

More severe punishments may be assigned by any principal depending on the facts of the specific case, up to and including expulsion, except as specifically limited by law.

Principals have authority to deny a senior to participate/walk at graduation if they get into trouble during the final nine (9) weeks of their senior year (i.e., Senior pranks that are vandalism, theft, etc.)

Note: Some incidents within the Chart of Infraction are local codes and definitions that do not meet the definitions of School Environmental Safety Incident Reporting (SESIR) incidents. Consequences may vary based on the Principal's discretion, seriousness and the previous number of incidents the student may have.

ISS	INDIVIDUALIZED STUDY SERVICES
OSS	OUT-OF-SCHOOL SUSPENSION
CES	CLASSROOM EXCLUSION SERVICES
SER	SCHOOL SERVICE WORK

All Civil citation or similar prearrest diversion programs must comply with **F.S. 985.12**.

Criteria for assigning a student who commits a petty act of misconduct to a school-based intervention program. If a student's assignment is based on a noncriminal offense, the student's participation in a school-based intervention program may not be entered into the Juvenile Justice Information System Prevention Web.

Criteria for recommending to law enforcement that a student who commits a criminal offense be allowed to participate in a civil citation or similar prearrest diversion program as an alternative to expulsion or arrest.

ABSENTEEISM

1. ATTENDANCE

In accordance with Florida Statute 984.151, after five (5) unexcused absences, or absences for which the reasons are unknown, within a calendar month, or ten (10) within a 90 calendar-day period, the Superintendent may file a truancy petition.

EXCESSIVE LATE ARRIVALS OR EARLY CHECKOUTS WILL BE TREATED AS AN UNEXCUSED ABSENCE AND DEALT WITH AS PER FLORIDA STATUTES 984.151, 1003.02, AND 1003.26

A student who accumulates five (5) unexcused tardies to school or checkouts, except for documented medical/dental appointments or other authorized reasons that constitute an excused absence, shall be deemed absent one school day. With high school students, tardies/checkouts from each period will count toward the total. Elementary and middle school tardies/checkouts will be assessed on a daily basis (F.S. 1003.02).

Upon the occurrence of any of the foregoing conditions, verbal notice or notice by registered letter will be sent to the parent or guardian requiring the parent or guardian to appear before SARC (School Attendance Review Committee) or the school's child study team, if applicable, pursuant to Florida Statute 1003.26.

After 15 unexcused absences in any 90-calendar-day period, the student and his/her parent/guardian will be referred to the local Children In Need of Services/Families In Need of Services (CINS/FINS). The CINS/FINS provider has the authority under Florida law to:

a) file legal charges against the parent/guardian.
b) file legal charges against the student.
c) refer the family for intervention services.

After 15 absences due to illness (excused or unexcused) in any 90-calendar-day period, students will be required to provide a physician's statement explaining the absences.

2. SKIPPING (LOCAL: ZAT)

Reporting to school, but subsequently missing a class or leaving the school grounds without authorization shall subject students to the following minimum consequences:

Absenteeism/Skipping

Offense	ELEMENTARY	SECONDARY
1st	Principal/teacher/parent conference within three (3) days of incident.	Silent Lunch, Detention, School Service Work, Principal's discretion
2nd	Principal's discretion ranging from silent lunch, detention or ISS.	ISS, minimum one (1) day
3rd		ISS, minimum three (3) days

3. TARDINESS (LOCAL:ZAS/ZAT/ZHT)

If a student is not in their assigned seat when the tardy bell rings, they are tardy. Reporting to class after the tardy bell has finished ringing without a proper pass for being late, will result in the student being marked tardy. Students cannot be suspended out of school for unexcused tardies.

Tardy

Offense	SECONDARY
1st Tardy	Warning by teacher
2nd Tardy	Warning by teacher and parent notification
3rd Tardy	Parent notification & silent lunch or detention
4th Tardy	Parent notification and assign silent lunch or detention
5th Tardy	Referral written – ISS one (1) day/School Service Work
6th Tardy	Referral written – ISS minimum one (1) day
7th Tardy	Referral written – Defiance of Authority – Principal discretion

Consequences for student tardies reset at the beginning of each nine (9) weeks.

ALCOHOLIC BEVERAGES,DRUGS, TOBACCO: PROHIBITED CONDUCT

1. ALCOHOL/DRUGS (SESIR: DRD, DRU, ALC) - NOTIFY LAW ENFORCEMENT

Alcohol: (possession, use, or sale) Possession, sale, purchase or use of alcoholic beverages. Use means the person is caught in the act of using, admits to use or is discovered to have used in the course of an investigation.

Drug Use/Possession: (illegal drug possession or use) The use or possession of any drug, narcotic, controlled substance, or any substance when used for chemical intoxication. Use means the person is caught in the act of using, admits to use or is discovered to have used in the course of an investigation.

Drug Sale/Distribution: (illegal sale or distribution of drugs) The manufacture, cultivation, sale, purchase or distribution of any drug, narcotic, controlled substance or substance represented to be a drug, narcotic, or controlled substance.

Any student who commits or attempts to commit any of the foregoing of any of the following substances or items upon school property, on school-sponsored transportation, or at any school-related function or activity; or detectable consumption or use, prior to being present on school property, on school-sponsored transportation, or at any school-related function or activity, of any of the following substances.

a) Alcoholic beverages
b) Any controlled substance as defined by Chapter 893, Florida Statutes
c) Prescription drugs, other than controlled substances, for which the student or potential purchaser has no valid prescription
d) Hallucinogenic drugs or combinations
e) Counterfeit drugs, including prohibited substances, which shall include those substances possessed, sold and/or used that are held out to be, or represented to be, controlled substances or illegal substances
f) Any compound, liquid or chemical specified under Section 877.111(1), Florida Statutes
g) Any legal substances used in an unsafe way, such as inhalants or over-the-counter drugs.
h) K-2 and any other synthetic compound used in an attempt to obtain an altered state of consciousness

NOTE: An attempt is any act toward the commission of an offense resulting in failure to commit the offense or interception or prevention in the execution of the offense.

A parent, at their own expense may contest a reasonable suspicion alcohol/drug recommendation for expulsion. They may provide a negative test from an official lab (Lab Corp/Quest) within 24-48 hours of the discipline incident.

Alcohol-Controlled Substance-Prescription, Hallucinogenic & Counterfeit Drugs-Paraphernalia-and/or any Compound, liquid or chemical specified under Florida Statutes

Offense	ELEMENTARY	SECONDARY
1st	Principal's discretion and/or OSS up to 10 days and mandatory parent conference with School Board designee **and referral for counseling.** (If parent or guardian does not appear before the School Board or designee on the designated date, the OSS will be changed to expulsion.)	**Expulsion and referral for counseling.** (limited exceptions may be allowed as per Section 1006.09, Florida Statute.)

2. OVER THE COUNTER MEDICATION (LOCAL: ZUO)

a) Over the counter medication shall be delivered to the health clinic or the school office and administered in accordance with parental instructions according to School Boardpo5330.
b) If a student brings over the counter medication and distributes it to another student, a more severe consequence shall be administered.
c) A more severe punishment may be assigned by the Principal based on the facts of the specific situation.

Over the Counter Medication

	ELEMENTARY	SECONDARY
1st	Warning/Parent Notification	Warning/Parent Notification
2nd	Parent conference	Principal's discretion: silent lunch, detention, school service work, one (1) day ISS
3rd	Principal's discretion: silent lunch, detention, one (1) day ISS	Three (3) days ISS
4th	Three (3) days ISS	One (1) day OSS

*Note: A student may possess and use medication in its original bottle to relieve one's self headaches while on school property or at a school-sponsored event or activity without a physician's note or prescription if the medication is regulated by the United States Food and Drug Administration for over-the-counter use to treat headaches as per Section 1002.20, Florida Statute.

Any student medically required to carry a metered dose inhaler for treatment of asthma or epinephrine auto-injector must present a current doctor's note requiring the inhaler or epinephrine and its prescribed use to the Principal's office, together with written approval from their parent as required by Section 1002.20, Florida Statute.

3. TOBACCO (SESIR: TBC) - NOTIFY LAW ENFORCEMENT

a) Possession/Distribution/Purchasing or using tobacco or any nicotine product (i.e., Vape, Juul, Rolling Papers, etc.)
b) Possession/Distribution/Purchasing or using any counterfeit substance held out to be tobacco or nicotine.
c) Possession/Distribution/Purchasing or using electronic cigarettes / nicotine delivery systems or paraphernalia of such devices containing nicotine.

NOTE: First Offense tobacco related violations will be enrolled in the Tobacco Prevention Program (3.5-hour online course)

Tobacco

Offense	ELEMENTARY	SECONDARY
1st	Tobacco Prevention Program & Principal's discretion: conference with parent/student, or silent lunch, detention, or ISS minimum one (1) day	Tobacco Prevention Program & Principal's discretion ranging from Conference with parent/student, silent lunch, detention, school service work, or ISS
2nd	ISS minimum three (3) days	Minimum of three (3) days OSS
3rd	OSS minimum three (3) days	Minimum five (5) days OSS
4th	OSS minimum five (5) days	

DEFIANCE OF AUTHORITY

- **Note:** incidents below are local codes and definitions that do not meet the definitions of SESIR incidents. Consequences may vary based on the seriousness and the previous number of incidents the student may have.

1. DISOBEYING OR DISREGARDING SCHOOL PERSONNEL OR SCHOOL RULES (LOCAL: ZDA/ZDR/ZDS/ZRV) **e directives, rules, or instructions given by school administrators, faculty, or other authority figures within the school.**

Defiance of Authority

Offense	ELEMENTARY	SECONDARY
1st	Principal's discretion ranging from CES to ISS, minimum one (1) day	Principal's discretion ranging from CES to ISS, minimum one (1) day
2nd	Principal's discretion ranging from CES to ISS, minimum three (3) days	Principal's discretion ranging from CES to ISS, minimum three (3) days
3rd	Principal's discretion ranging from CES to minimum one (1) day OSS	Principal's discretion ranging from CES to minimum of three (3) days OSS

4th	Principal's discretion minimum three (3) days OSS	More severe punishment based on principal's discretion up to and including expulsion. The principal may assign a more severe punishment on the first or second offense.

DISHONESTY

1. CHEATING (LOCAL: ZCC)

Illegally procuring or sharing of work/test responses. EXAMPLES of cheating include, but are not limited to, the following:

a) Copying from another student's test or helping another student during a test
b) Providing other students with information regarding a test
c) Submitting another student's work as one's own
d) Stealing copies of tests or answer keys
e) Copying another student's homework, test, quiz, project, book report, assignment or take-home test
f) Allowing another student to copy a test, homework assignment, quiz, project, book report, assignment or take-home test
g) Plagiarizing or presenting material taken from another source without appropriate documentation
h) Changing answers on a test, assignment, project, etc., after grading
i) Changing grades in a grade book or altering a computer grading program
j) Using programmable calculators in a manner not specified by the teacher

ALL GRADE LEVELS – ALL OFFENSES

The work on which the student cheats can be graded as ZERO and an individual school consequence may be imposed in addition to the zero.

2. LYING/FALSE STATEMENTS (LOCAL: ZLY)

Giving false oral information to school personnel or making a false written statement for use by school personnel.

ALL GRADE LEVELS – ALL OFFENSES

Principal's Discretion (judgement based on severity of offense).

WARNING: A recommendation of expulsion may also be made for any student found to have intentionally made false, injurious accusations against a teacher or other member of the school staff according to the School District Code of Student Conduct. Also, the parent or guardian of such student may be liable for any expenses incurred by the falsely accused person in the defense of the charges made, and the student and parent or guardian may be sued for slander or libel as provided by law.

ELECTRONIC COMMUNICATIONS

3. ELECTRONIC/WIRELESS DEVICE (LOCAL: ZZZ)

The term wireless communication includes those devices which provide communication by text, word, voice or picture; such as, smart glasses (including prescriptions), cell phones**,** smart watches, palm pilots, iPods, iPads, laptops, notebooks,

e-readers, etc. Refusal to submit electronic devices during an investigation, will result in a Code of Student Conduct violation. (refer to School Board Policies 5136.01 &7540.03)

Elementary and Middle School: All electronic devices, including but not limited to smart watches and cell phones **shall not** be activated or used during school hours unless authorized for educational use by an administrator or a teacher. Repeated failure to comply with a directive by a teacher or administrator for the student to shut off and put away the device shall result in a referral for defiance of authority.

High School: Students are permitted to use all electronic devices before school, during passing period, and their designated lunch periods unless prohibited by administration.

Earphones or earbuds are required when using electronic devices on campus, however the use of two earbuds is prohibited. Due to safety concerns, students will only be permitted to use one earbud **Use of any electronic device in class is prohibited unless it used for educational purposes and authorized by administration or a teacher. A teacher shall designate an area for wireless communications devices during instructional time. Repeated acts of the offenses listed below and/or failure to comply with the directives established by administration and a classroom teacher will result in a referral for defiance of authority or more severe consequences.**

All Students: No student may have in his or her possession any electronic communication device or any other item that records, stores, or transmits data during any standardized or regularly scheduled testing (EOC, semester exams, PERT etc.). Any student using an electronic communication device in committing a criminal act at a school, on a bus, or at a school event is guilty of a serious breach of conduct, and will be referred for criminal prosecution as well as school discipline.

Offense	ELEMENTARY	MIDDLE SCHOOL
1st	Documented warning, confiscation of item, notification and return to parent.	Documented warning, confiscation of item, notification and return to parent.
2nd	One (1) day ISS confiscation of item, notification and return to parent.	School Service Work, confiscation of item, notification and return to parent
3rd	Two (2) days ISS confiscation of item, notification and return to parent.	One (1) day ISS confiscation of item, notification and return to parent.
4th	Three (3) days ISS, confiscation of item, notification and return to parent.	Two (2) days ISS confiscation of item, notification and return to parent.
5th	Three (3) days OSS, plus confiscation of item and return to parent.	Three (3) days OSS, plus confiscation of item and return to parent.

HIGH SCHOOL

Type of Offense	Consequence
Failure to comply with school's policy	1st Offense: Principal's discretion to confiscate the item, silent lunch, detention, or school service work 2nd Offense: 1 day ISS 3rd Offense: 3 days ISS Any additional offenses will result in OSS

INAPPROPRIATE PERSONAL CONDUCT

1. LANGUAGE (LOCAL: ZPF)

Using profanity or verbal abuse including name calling, racial slurs, or derogatory statements.

Profanity or Verbal Abuse
ALL GRADE LEVELS – ALL OFFENSES Principal's Discretion ranging from parent conference, counseling, silent lunch, detention, School Service Work, ISS to OSS, based on severity and number of offenses.

2. BULLYING (SESIR: BUL)

(intimidating behaviors that are repeated, intentional, and involve a power imbalance) Systematically and chronically inflicting physical hurt or psychological distress on one or more students or employees. Bullying includes instances of cyberbullying, as defined in Section 1006.147(3)(b), F.S. Bullying may include, but is not limited to, repetitive instances of teasing, social exclusion, threats, intimidation, stalking, physical violence, theft, harassment, public or private humiliation, or destruction of property. If the physical harm or psychological distress is not the result of systematic or chronic behavior, evaluate for Harassment. (MIS1.21)

3. HARASSMENT (SESIR: HAR)

(one-time, insulting behaviors) Any threatening, insulting, or dehumanizing gesture, use of data or computer software, or written, verbal, or physical conduct that places a student or school employee in reasonable fear of harm to his or her person or damage to his or her property, has the effect of substantially interfering with a student's educational performance, opportunities, or benefits, or has the effect of substantially disrupting the orderly operation of a school including any course of conduct directed at a specific person that causes substantial emotional distress in such a person and serves no legitimate purpose. Instances of Harassment that are chronic or repeated in nature should be evaluated for Bullying or Bullying-related.

Bullying & Harassment

Offense	ELEMENTARY	SECONDARY
1st	Principal's discretion ranging from parent conference, counseling, silent lunch, detention, to ISS.	Principal's discretion ranging from parent conference, counseling, silent lunch, detention, school service work, to ISS
2nd	ISS minimum one (1) day and parent conference and counseling by a school board employee	ISS minimum 3 days and parent conference and counseling by a school board employee
3rd	OSS minimum one (1) day and parent conference and counseling by a school board employee	OSS minimum 3 days and parent conference and counseling by a school board employee
4th	OSS minimum three (3) days and parent conference and counseling by a school board employee	OSS minimum 5 days and parent conference and counseling by a school board employee
5th	Principals Discretion based on circumstances	Principals Discretion based on circumstances

4. HAZING (SESIR:HAZ) – NOTIFY LAW ENFORCEMENT

Any action or situation that endangers the mental or physical health or safety of a student at a school with any of grades 6 through 12 for purposes of initiation or admission into or affiliation with any school-sanctioned organization. "Hazing" includes, but is not limited to: (a) pressuring, coercing, or forcing a student to participate in illegal or dangerous behavior, or (b) any brutality of a physical nature, such as whipping, beating, branding, or exposure to the elements.

(Grades 6 -12)
OSS minimum ten (10) days and incident reported to law enforcement.
Principal may recommend expulsion based on severity of the incident.

5. DISRUPTIVE BEHAVIOR (LOCAL: ZDB)

Conduct as determined by the principal that disrupts the learning environment.

Disrespect and Minor Confrontations
ALL GRADE LEVELS – ALL OFFENSES Principal's Discretion ranging from parent conference, counseling, silent lunch, detention, School Service Work, ISS to OSS, based on severity and number of offenses.

6. CONSPIRACY (LOCAL: ZAC)

Any action by a student to assist or encourage any other student to violate any of the rules set forth in this Code of Student Conduct

ALL GRADE LEVELS – ALL OFFENSES
Same as the minimum consequences of the rule actually violated by the other student(s).

7. DRESS CODE/INAPPROPRIATE DRESS (LOCAL: ZDC)

While on the grounds of a public school during the regular school day, students are prohibited from wearing clothing that exposes underwear or body parts in an indecent or vulgar manner or that disrupts the orderly learning environment (F.S. 1006.07).

ALL GRADE LEVELS

1st Offense	Verbal warning & Principal or designee shall call parent/guardian
2nd Offense	Principal or designee must meet with parent/guardian and the student is ineligible to participate in or attend extracurricular activities for a period not to exceed five (5) days.
3rd Offense	In-school suspension for a period not to exceed three (3) days, the student is ineligible to participate in or attend any extracurricular activities for a period not to exceed thirty (30) days and the Principal or designee shall call the student's parent/guardian and send the parent/guardian a letter notifying them of the student's in-school suspension and ineligibility to participate in extracurricular activities.

8. OTHER MAJOR OFFENSES (SESIR:OMC)

Any serious, harmful incident resulting in the need for law enforcement consultation not previously classified. This includes any drug or weapon found unattended and not linked to any individual; such incidents must be coded with the appropriate Related element (such as Drug-related or Weapon-related) and incident involvement must be reported as unknown.

Other **inappropriate conduct as determined by the principal**, examples: student possessing drug paraphernalia, for use of controlled substances (i.e., Dab pen, grinder, scale, rolling papers, etc.), gambling, possession/sale of, downloading or printing pornographic materials, sexting during school hours, transportation, at school sponsored events, and other conduct deemed inappropriate by the principal.

ALL GRADE LEVELS – ALL OFFENSES

Principal's discretion ranging from parent conference, counseling, silent lunch, detention, School Service Work, CES, ISS, OSS and Expulsion. Based on the severity and number of offenses.

Note: A local code of inappropriate behavior (ZIB) may be considered if the offense does not rise to the SESIR definition.

9. INAPPROPRIATE BEHAVIOR (LOCAL:ZIB)

Inappropriate conduct as determined by the principal. Conduct that is unwarranted and is reasonably interpreted to be demeaning or offensive.

ALL GRADE LEVELS – ALL OFFENSES

Principal's discretion ranging from parent conference, counseling, silent lunch, detention, School Service Work, CES, to ISS. Based on the severity and number of offenses may result in OSS.

10. DISRUPTION OF CAMPUS (SESIR:DOC) - NOTIFY LAW ENFORCEMENT

(major disruption of all or a significant portion of campus activities, school-sponsored events, and school bus transportation) Disruptive behavior that poses a serious threat to the learning environment, health, safety, or welfare of others. Examples of major disruptions include bomb threats, inciting a riot, or initiating a false fire alarm.

ALL GRADE LEVELS – ALL OFFENSES

Principal's discretion ranging from parent conference, counseling, silent lunch, detention, School Service Work, CES, ISS, OSS, and Expulsion. Based on the severity and number of offenses.

MAKING FALSE REPORTS

1. BOMB THREATS (SESIR: DOC) - NOTIFY LAW ENFORCEMENT

Threat to throw, project, place, or discharge any destructive device. False report about planting bomb or explosive. It is unlawful for any person to threaten to throw, project, place, or discharge any destructive

device with intent to do bodily harm to any person or with intent to do damage to any property of any person, (Section 790.162, Florida Statutes).

2. FALSE REPORTS- NOTIFY LAW ENFORCEMENT

Make a false report, with intent to deceive, mislead or otherwise misinform any person concerning the placing or planting of any bomb, dynamite or other deadly explosive, (Section 790.163, Florida Statutes).

3. FALSE FIRE ALARMS (SESIR: DOC) - NOTIFY LAW ENFORCEMENT

Setting off fire alarms when there is no fire or false alarm of emergency when no emergency exists

Bomb Threats/False Reports/False Fire Alarms

Offense	ELEMENTARY	SECONDARY
1st	Principal's discretion ranging from parent conference, counseling, silent lunch, detention, ISS, to OSS, mandatory parent conference.	Ten (10) days OSS and mandatory parent conference.
2nd	Five (5) days OSS and mandatory parent conference.	Expulsion.
3rd	Expulsion.	

POSSESSION OF DANGEROUS OBJECTS

Note: Any student expelled for a firearm or weapon as defined in chapter 790 or making a threat or false report as defined by Florida Statutes §§ 790.162 and 790.163 shall be referred for mental health services.

1. FIREARM (SESIR: WPO) - NOTIFY LAW ENFORCEMENT

Firearm means any weapon which will, is designed to, or may readily be converted to expel a projectile by the action of any explosive. Firearms of any kind (operable or inoperable, loaded or unloaded) including, but not limited to, handguns, zip guns, pistols, rifles, shotguns, starter guns, explosive propellants or destructive devices.

WARNING: Exhibiting a firearm or weapon within 1,000 feet of a school or possessing a firearm on school property or possessing an electric weapon, destructive device, or other weapon on school property is a third-degree felony.

NOTE: Simulating a firearm or weapon while playing or wearing clothing or accessories that depict a firearm or weapon or express an opinion regarding a right guaranteed by the Second Amendment to the United States constitution is not grounds for disciplinary action or referral to the criminal justice or juvenile justice system. A student may be subject to disciplinary action if a student's clothing or simulating a firearm or weapon while playing substantially disrupts student learning, causes bodily harm to another person, or places a person in reasonable fear of bodily harm.

2. WEAPONS (SESIR: WPO) - NOTIFY LAW ENFORCEMENT

Weapons means any dirk, metallic knuckles, slungshot, billie, tear gas gun, chemical weapon or device or other deadly weapon except a firearm or common pocketknife, plastic knife, or blunt-bladed table knife which can be used to inflict physical harm on another.

ALL GRADE LEVELS – ALL OFFENSES

Expulsion from school for balance of current school year, summer school and all of the next year.

3. KNIVES (SESIR: WPO) - NOTIFY LAW ENFORCEMENT

Wielding/threatening with a knife or other sharp object or pointed implement that can be used as a weapon, including, but not limited to, hunting knives, razor knives, box cutters, etc.

Knives

ELEMENTARY	SECONDARY
K-2: Principal's discretion ranging from parent conference, counseling, silent lunch, detention, ISS, to OSS. 3-5: OSS minimum five (5) days.	OSS minimum five (5) days to Expulsion.

4. HAZARDOUS MATERIAL - NOTIFY LAW ENFORCEMENT

(such as chemicals or other substances)

A. The term "hazardous materials" includes all materials and substances which are now designated or defined as hazardous by the law of this state or federal law or by the rules or regulations of this state or any federal agency.

B. The term "spill" includes the accidental spilling, leaking, pumping, pouring, emitting, or dumping of any hazardous waste or material which creates an emergency hazardous situation or is expected to create an emergency hazardous situation.

C. An "emergency hazardous situation" exists whenever there is an imminent and substantial threat to public health and safety, Section 768.128, Florida Statutes.

Payment for damages and cleanup of hazardous spills on School Board property will be sought from parents. The initial determination of whether or not a substance or material constitutes a hazardous substance or material shall be the right of the principal or designee.

Hazardous Materials

Offense	ELEMENTARY	SECONDARY
1st	Parent notification and Principal's discretion ranging from parent conference, counseling, silent lunch, detention, ISS, to OSS.	Parent notification and Principal's discretion up to and including expulsion, depending on the seriousness of the violation.
2nd	OSS five (5) days and parent conference.	Ten (10) days OSS and parent conference.

5. POSSESSION OF UNAUTHORIZED OBJECTS (LOCAL: ZUO)

Other inappropriate objects, unauthorized on School Board properties. Such objects may include, but are not limited to: Airsoft guns, BB guns, Nerf guns, Orbeez guns, common pocket knife and sling shot. These items are deemed inappropriate for schools and are not authorized to be on School Board properties.

a) Additional items may include but are not limited to: mace, pepper spray, cigarette lighters, lasers, laser pointers, fireworks, stun guns, paintball guns, electronic devices, chemicals, ammunition.etc.
b) That can be used to cause a disruption as determined by the principal or the principal's designee.
c) That can be used in a threatening or intimidating way.

Possession of Unauthorized Object

Offense	ALL GRADE LEVELS
1st	Principal's discretion ranging from parent conference, counseling, silent lunch, detention, school service work, ISS, to OSS
2nd	Three (3) days OSS and mandatory parent conference
3rd	Five (5) days OSS and mandatory parent conference
4th	Ten (10) days OSS with a recommendation for Expulsion.

ALL GRADE LEVELS

The initial determination of whether or not an object constitutes a weapon or unauthorized object shall be the right of the principal or designee. Firearms, weapons, knives, and unauthorized objects will be confiscated.

SCHOOL BUS VIOLATIONS

a) Disobeying the school bus operator – the operator has complete authority over the students. Students will sit in assigned seats;
b) Not staying seated at all times when bus is moving;
c) *Failure to wear safety belt while riding bus equipped with safety belts;
d) Having arms and heads outside windows. Intentionally littering on the bus, throwing objects inside the bus, throwing objects from the windows or throwing objects at the bus.
e) Using abusive or profane language on the bus;
f) Not being quiet at all railroad crossings;
g) Pushing/tripping, etc., while boarding, leaving, or riding buses; not keeping their hands to themselves;
h) Eating or drinking on the school bus.

In addition to or in place of the consequences below, violations of this Code of Student Conduct occurring on the school bus may have the consequences as set forth under such violation.

School Bus Violations

Offense	ELEMENTARY	SECONDARY
1st	Principal's discretion and parent notification.	Principal's discretion and parent notification
2nd	One (1) day bus suspension and parent notification.	Three (3) days bus suspension and parent notification.
3rd	Minimum three (3) days bus suspension.	Minimum ten (10) days bus suspension.
4th	Minimum of five (5) days bus suspension.	Long-term suspension from the bus (withdrawal of bus privileges for a period between eleven (11) days and the balance of the school year.
5th	Withdrawal of bus privileges for minimum period of ten (10) days.	

Suspension from the bus applies to all home-to-school and school-to-home school bus

*Each passenger on a school bus that is equipped with safety belts or restraint system shall wear a properly adjusted and fastened safety belt at all times while the bus is in operation.

SEXUAL OFFENSES

A Title IX investigation may be initiated, based off the facts/information generated from an offense being reported to the school.

1. SEXUAL BATTERY (SESIR: SXB) - NOTIFY LAW ENFORCEMENT

Any sexual act or attempt directed against another person, forcibly and/or against the person's will, or where the victim is incapable of giving consent because of his or her youth, or because of temporary or permanent mental incapacity. This category includes rape, penetration of private body parts of another person (either through human contact or using an object), and all acts prohibited by Section 794.011(h), Florida Statutes.

ALL GRADE LEVELS – ALL OFFENSES Principal shall recommend expulsion.

2. SEXUAL ASSAULT (SESIR: SXA) - NOTIFY LAW ENFORCEMENT

An incident that includes fondling, indecent liberties, child molestation, or threatened rape. Both males and females can be victims of sexual assault.

- Note: Recommendation for further counseling.

Parent conference and ten (10) days OSS. Principal's discretion; any punishment up to and including expulsion based on the severity of the offense.

3. SEXUAL HARASSMENT (SESIR: SXH) - NOTIFY LAW ENFORCEMENT

Unwelcome conduct of a sexual nature, such as sexual advances, requests for sexual favors, and other verbal, nonverbal, or physical conduct of a sexual nature. Harassing conduct can include verbal or nonverbal actions, including graphic and written statements, and may include statements made through computers, cellphones, and other devices connected to the Internet. The conduct can be carried out by school employees, other students, and non-employee third parties.

Examples may include, but are not limited to:

Physical

a) pinching or patting the buttocks of another; direct contact or attempted contact with the private parts of a person.

b) deliberate brushing against the private body parts of another.

Verbal/electronic

c) comments, kidding, jokes, or teasing with regard to physical attributes, or lack thereof, or sexual orientation.

d) Solicitation of naked photos/child pornography

Incidents of sexual harassment shall be reported to an administrator, guidance counselor, or teacher immediately. School officials shall make a good faith effort to notify the parents or guardians of the victims immediately. **A more severe consequence may be assigned by the Principal based on the facts of the specific situation.**

Sexual Harassment – ALL GRADE LEVELS

Offense	VERBAL/ELECTRONIC OR PHYSICAL
1st	Three (3) days CES, ISS or One (1) day OSS
2nd	Three (3) days OSS
3rd	Five (5) days OSS

4. SEXUAL OFFENSES (SESIR: SXO) (LOCAL: ZSM) - NOTIFY LAW ENFORCEMENT

Other sexual contact, including intercourse, without force or threat of force. Subjecting an individual to lewd sexual gestures, sexual activity, or exposing private body parts in a lewd manner. (Law enforcement must be notified to investigate.)

CONSENSUAL SEXUAL MISCONDUCT ON SCHOOL PROPERTY, ON SCHOOL-SPONSORED TRANSPORTATION, AT SCHOOL-SPONSORED ACTIVITIES OR EVENTS FUNCTIONS: Such conduct shall include but not be limited to:

a) Consensual sexual activity, to include any penetration of private body parts of another person by human contact and such acts prohibited by Sec. 794.011(h), Florida Statutes.
b) Consensual sexual activity, as defined under Lewd and Indecent Behavior Violation; Section F, 2.A, and 2.B, page 46, Florida Statutes.
c) Touching any person in a lewd or indecent manner.

d) Exhibiting private parts or committing any other sexual act or conduct on a person.

e) Knowingly committing any of the above acts in the presence of a child under the age of 16 years, or who is mentally incapacitated, without actually committing sexual battery as previously defined.

Note: Student will be referred for counseling.

Sexual Offenses

Offense	ELEMENTARY	SECONDARY
1st	Principal's discretion ranging from parent conference, silent lunch, detention, ISS, OSS, up to including expulsion	Parent notification and five (5) days OSS. Principal's discretion; any punishment up to and including expulsion, based on the severity of the offense.
2nd	Parent conference and ten (10) days OSS	Parent conference and ten (10) days OSS Principal's discretion; any punishment up to and including expulsion based on the severity of the offense.
3rd	Principal's discretion; any punishment up to and including expulsion.	

- Note: A local code of sexual misconduct (ZSM) may be considered if an offense does not rise to the SESIR definition within Section H above. Consequences may vary based on the seriousness and the previous number of incidents the student may have.

VIOLATIONS AGAINST PROPERTY

1. GRAND THEFT (SESIR: STL) (LOCAL: ZSL) - NOTIFY LAW ENFORCEMENT

a) (taking of property from a person, building, or a vehicle) ($750 threshold) The unauthorized taking of the property of another person or organization, including motor vehicles, valued at $750 or more, without threat, violence, or bodily harm., Section 812.014, Florida Statutes.

ALL GRADE LEVELS
Restitution based on value and number of occurrences.
Parent notification and principal's discretion up to and including expulsion.

- **Note:** incidents above that do not meet the definitions of SESIR incidents may be coded with the local code: stealing (ZSL). Consequences may vary based on the seriousness and the previous number of incidents the student may have.

2. TRESPASS (SESIR: TRS) - NOTIFY LAW ENFORCEMENT

Trespassing upon grounds or facilities of a school; any person who:

a) does not have legitimate business on the campus or any other authorization, license, or invitation to enter or remain upon school property;

or

b) is a student currently under suspension or expulsion and who enters or remains upon the campus or any other facility owned by any such school;

or

c) enters or remains upon the campus or other facility of a school after the principal of such school, or his or her designee, has directed such person to leave such campus or facility or not to enter upon the campus or facility; commits a trespass upon the grounds of a school facility (Section 810.097, Florida Statutes).

Grand Theft and Trespass

Offense	ELEMENTARY	SECONDARY
1st	Principal's discretion ranging from parent conference, counseling, ISS, parent notification and payment for loss.	Parent notification, payment for loss and ISS minimum five (5) days.
2nd	OSS minimum one (1) day and payment for loss.	OSS minimum three (3) days and payment for loss.
3rd	OSS minimum three (3) days and recommendation for professional counseling before returning to school and payment for loss.	OSS minimum ten (10) days, recommendation for professional counseling before returning to school and payment for loss.

3. BURGLARY (SESIR: BRK) - NOTIFY LAW ENFORCEMENT

Burglary means entering or remaining in a dwelling, a structure, or a conveyance with the intent to commit an offense therein, unless the premises are at the time open to the public or the defendant is licensed or invited to enter or remain (Section 810.02, Florida Statutes).

Burglary

Offense	ELEMENTARY	SECONDARY
1st	***K-1:*** Principal's discretion ranging from parent conference, counseling, silent lunch, detention, ISS to OSS, parent notification. ***2–5:*** OSS for minimum of five (5) days.	OSS for minimum of ten (10) days up to expulsion.

4. CRIMINAL MISCHIEF (SESIR: VAN) (LOCAL: ZAP, ZDP) - NOTIFY LAW ENFORCEMENT

Criminal Mischief (destruction, damage, or defacement of school or personal property) ($1,000 threshold) Willfully and maliciously injuring or damaging by any means any real or personal property belonging to another, including, but not limited to, the placement of graffiti thereon or other acts of vandalism thereto. (Section 806.13, Florida Statutes). Student(s) may be responsible for restitution per incident.

Criminal Mischief/Vandalism

Offense	ELEMENTARY	SECONDARY
1st	Payment for damages and Principal's discretion ranging from parent conference, counseling, silent lunch, detention to ISS, parent notification.	Payment for damages and parent notification or OSS minimum one (1) day.
2nd	Payment for damages, parent notification and/or OSS minimum one (1) day.	Payment for damages, parent notification and/or OSS minimum five (5) days
Note	*Damages to a school bus may also result in suspension from the bus for minimum of three (3) days.*	*Damages to a school bus may also result in suspension from the bus for minimum of five (5) days.*

Note: incidents above that do not meet the definitions of SESIR incidents may be coded with the local code: abuse – school property (ZAP) or destruction of school property (ZDP). Consequences may vary based on the Principal's discretion, seriousness and the previous number of incidents the student may have.

5. ARSON (SESIR: ARS) (LOCAL: ZAR) - NOTIFY LAW ENFORCEMENT

(intentionally setting a fire on school property) To intentionally damage or cause to be damaged, by fire or explosion, any dwelling, structure, or conveyance, whether occupied or not, or its contents. (Section 806.01, Florida Statutes)

ALL GRADE LEVELS- ALL OFFENSES PRINCIPAL SHALL RECOMMEND EXPULSION

- **Note:** incidents above that do not meet the definitions of SESIR incidents may be coded with the local code: arson (ZAR). Consequences may vary based on the Principal's discretion, seriousness and the previous number of incidents the student may have.

VIOLATIONS OF INTERNET POLICY, RULES ANDREGULATIONS

Note: Consequences are in accordance with the MIS Technology Policies and Procedures Manual.

1. VIOLATING INTERNET POLICY, RULES AND REGULATIONS OR INAPPROPRIATE USE OF HACKING (LOCAL: ZIP) - NOTIFY LAW ENFORCEMENT

Any student found violating the terms and conditions of the Highlands County School District policies, school rules, computer lab rules, and/or regulations on use of the Internet or internal network, as set forth by School Board po7540.03, will lose access privileges and be subject to school disciplinary actions and/or appropriate legal action.

ALL GRADE LEVELS – ALL OFFENSES Principal's discretion ranging from parent conference, counseling, CES, ISS, OSS to expulsion.

2. **DESTRUCTION OF SOFTWARE OR HARDWARE – NOTIFY LAW ENFORCEMENT (LOCAL:ZPD)**	
ELEMENTARY	**SECONDARY**
Payment for damages and Principal's discretion ranging from parent conference, counseling, silent lunch, detention, ISS, to OSS minimum one (1) day.	Payment for damages, parent notification and/or OSS for minimum of one (1) day.

THREAT/INTIMIDATION/VIOLENCE

1. ASSAULT/THREAT/INTIMIDATION (SESIR: TRE) (LOCAL: ZAL) - NOTIFY LAW ENFORCEMENT

An incident where there was no physical contact between the offender and victim, but the victim reasonably believed that physical harm could have occurred based on verbal or nonverbal communication by the offender. This includes nonverbal threats and verbal threats of physical harm which are made in person, electronically or through any other means. (instilling fear in others)
(Section 784.011, Florida Statutes.) No bodily contact is necessary.

Assault

Offense	ELEMENTARY	SECONDARY
1st	Principal's discretion ranging from parent conference, counseling, silent lunch, detention, ISS to OSS.	*High School:* ISS minimum three (3) days. *Middle School:* ISS minimum two (2) days
2nd	OSS minimum one (1) day.	*High School:* OSS minimum five (5) days. *Middle School:* OSS minimum one (1) day
3rd	Principal's discretion on a more severe punishment and parental involvement.	Principal's discretion on a more severe punishment and parental involvement.

Note: ASSAULT/THREAT/INTIMIDATION ON ANY ELECTED OFFICIAL (SCHOOL BOARD MEMBER OR SUPERINTENDENT) OR ON A SCHOOL BOARD EMPLOYEE, as defined in this Code of Student Conduct, if the person committing the offense knew, or had reason to know, the identity, position or employment of the victim, Section 784.081, Florida Statutes or Involved in the use or threat of physical force or violence against any person acting on behalf of the school, both on and off the campus (S.R.O., D.A.R.E. officer, therapist, counselor, contracted personnel, volunteers, guest speakers, etc.) the principal shall suspend the student out of school for up to 10 days and shall recommend expulsion.

- **Note:** incidents above that do not meet the definitions of SESIR incidents may be coded with the local code: threats/loud abusive language (ZAL). Consequences may vary based on the Principal's discretion, seriousness and the previous number of incidents the student may have.

2. AGGRAVATED ASSAULT (SESIR – TRE) - NOTIFY LAW ENFORCEMENT

An "aggravated assault" is an assault:

a) with a deadly weapon without intent to kill; or
b) with an intent to commit a felony

Aggravated Assault

Offense	ELEMENTARY	SECONDARY
1st	*K-1:* Principal's discretion ranging from parent conference, counseling, silent lunch, detention, ISS to OSS. *2 – 5:* OSS minimum five (5) days.	OSS minimum ten (10) days up to expulsion.

Note: ASSAULT/THREAT/INTIMIDATION ON ANY ELECTED OFFICIAL (SCHOOL BOARDMEMBER OR SUPERINTENDENT) OR ON A SCHOOL BOARD EMPLOYEE, as defined in this Code of Student Conduct, if the person committing the offense knew, or had reason to know, the identity, position or

employment of the victim, Section 784.081, Florida Statutes or Involved in the use or threat of physical force or violence against any person acting on behalf of the school, both on and off the campus (S.R.O., D.A.R.E. officer, therapist, counselor, contracted personnel, volunteers, guest speakers, etc.) the principal shall suspend the student out of school for up to 10 days and shall recommend expulsion.

3. BATTERY/FIGHTING (SESIR: FIT) (LOCAL: ZHA, ZIB, ZMC)- NOTIFY LAW ENFORCEMENT

(mutual combat, mutual altercation) When two or more persons mutually participate in use of force or physical violence that requires either physical intervention or results in injury requiring first aid or medical attention.

a) The right to determine whether physical contact is indeed a "fight or battery" shall be within the sole discretion of the principal or designee.

b) If the battery involves the transmission or extraction of body fluids (i.e., blood, urine, saliva, etc.), it will result in more severe consequences.

c) If the battery is on an employee of the School District and does not qualify under Section 784.081, Florida Statutes, the principal shall suspend the student out of school for up to 10 days and shall recommend expulsion.

Battery / Fighting

Offense	ELEMENTARY	SECONDARY
1st	Principal's discretion ranging from parent conference, counseling, silent lunch, detention to ISS.	*Middle School:* ISS minimum three (3) days and parent conference. *High School:* OSS minimum three (3) days, parent conference and counseling.
2nd	OSS minimum one (l) day.	*Middle School:* OSS minimum three (3) days and parent conference. *High School:* OSS minimum five (5) days, parent conference.
3rd	OSS minimum three (3) days.	OSS minimum ten (10) days and recommendation for professional counseling before returning to school.
4th	OSS minimum five (5) days and recommendation for professional counseling before returning to school.	Expulsion.

Note: A local code of hit, push, trip (ZHA), inappropriate behavior (ZIB), or minor confrontation (ZMC) may be considered if the offense does not rise to the SESIR definition.

Note: BATTERY ON ANY ELECTED OFFICIAL (SCHOOL BOARD MEMBER OR SUPERINTENDENT) OR ON A SCHOOL BOARD EMPLOYEE, as defined in this Code of Student Conduct, if the person committing the offense knew, or had reason to know, the identity, position or employment of the victim, Section 784.081, Florida Statutes or Involved in the use or threat of physical force or violence against any person acting on behalf of the school, both on and off the campus (S.R.O., D.A.R.E. officer, therapist, counselor, contracted personnel, volunteers, guest speakers, etc.) the principal shall suspend the student out of school for up to 10 days and shall recommend expulsion.

4. SIMPLE BATTERY (SESIR: PHA) (LOCAL: ZPA) - NOTIFY LAW ENFORCEMENT

An actual and intentional touching or striking of another person against his or her will, or the intentional causing of bodily harm to an individual.
(Section 784.03, Florida Statutes.) The right to determine whether physical contact is indeed a "fight or battery" shall be within the sole discretion of the principal or designee.

Simple Battery

Offense	ELEMENTARY	SECONDARY
1st	Principal's discretion ranging from parent conference, counseling, silent lunch, detention to ISS.	*Middle School:* ISS minimum three (3) days and parent conference. *High School:* OSS minimum three (3) days, parent conference and counseling.
2nd	OSS minimum one (1) day.	*Middle School:* OSS minimum three (3) days and parent conference. *High School:* OSS minimum five (5) days, parent conference.
3rd	OSS minimum five (5) days and recommendation for professional counseling before returning to school.	OSS minimum ten (10) days and recommendation for expulsion.

Note: BATTERY ON ANY ELECTED OFFICIAL (SCHOOL BOARD MEMBER OR SUPERINTENDENT) OR ON A SCHOOL BOARD EMPLOYEE, as defined in this Code of Student Conduct, if the person committing the offense knew, or had reason to know, the identity, position or employment of the victim, Section 784.081, Florida Statutes or Involved in the use or threat of physical force or violence against any person acting on behalf of the school, both on and off the campus (S.R.O., D.A.R.E. officer, therapist, counselor, contracted personnel, volunteers, guest speakers, etc.) the principal shall suspend the student out of school for up to 10 days and shall recommend expulsion.

- **Note:** incidents above that do not meet the definitions of SESIR incidents may be coded with the local code: physical altercation (ZPA). Consequences may vary based on the seriousness and the previous number of incidents the student may have.

5. AGGRAVATED BATTERY (SESIR: BAT) (LOCAL: ZBA) - NOTIFY LAW ENFORCEMENT

(intentional great bodily harm) A battery where the attacker intentionally or knowingly causes more serious injury as defined in Rule 6A-1.0017(8)(g), such as: great bodily harm, permanent disability, or permanent disfigurement; uses a deadly weapon; or, where the attacker knew or should have known the victim was pregnant.

ALL GRADE LEVELS-ALL OFFENSES
PRINCIPAL SHALL RECOMMEND EXPULSION AT ALL GRADE LEVELS

Note: BATTERY ON ANY ELECTED OFFICIAL (SCHOOL BOARD MEMBER OR SUPERINTENDENT) OR ON A SCHOOL BOARD EMPLOYEE, as defined in this Code of Student Conduct, if the person committing the offense knew, or had reason to know, the identity, position or employment of the victim, Section 784.081, Florida Statutes or Involved in the use or threat of physical force or violence against any person acting on behalf of the school, both on and off the campus (S.R.O., D.A.R.E. officer, therapist, counselor, contracted personnel, volunteers, guest speakers, etc.) the principal shall suspend the student out of school for up to 10 days and shall recommend expulsion.

- **Note:** incidents above that do not meet the definitions of SESIR incidents may be codedwith the local code: assault/battery (ZBA). Consequences may vary based on the seriousness and the previous number of incidents the student mayhave.

WARNING: Whenever any student, parent, or other person commits an assault or battery upon any elected official or employee of a school district, when the person committing the offense knows or has reason to know the identity or position or employment of the victim, and the elected official or employee is on school property or is away from the school property on official business, the offense for which the person is charged shall beclassified:

Assault	**=**	**First degree misdemeanor**
Battery	**=**	**Third degree felony**
Aggravated Assault	**=**	**Second degree felony**
Aggravated Battery	**=**	**First degree felony**

6. ROBBERY (SESIR: ROB) – NOTIFY LAWENFORCEMENT

(Using force to take something from another) The taking or attempted taking of money or other property from the person or custody of another with the intent to permanently or temporarily deprive the person or owner of the money or other property under the confrontational circumstances of force, or threat of force or violence, and/or by putting the victim in fear. A key difference in Grand Theft and Robbery is that Robbery involves violence, a threat of violence or assault, and putting the victim in fear, Section 812.13, Florida Statutes.

7. ARMED ROBBERY- NOTIFY LAW ENFORCEMENT

If, in the course of committing the robbery, the offender carried a firearm or other deadly weapon, then the robbery is a felony of the first degree, punishable by imprisonment for a term of years not exceeding life imprisonment or as provided in s. 775.082, s. 775.083, or s. 775.084, s. 812.13(2)(a). If, in the course of committing the robbery, the offender carried a weapon, then the robbery is a felony of the first degree, punishable as provided in s. 775.082, s. 775.083 or s. 775.084, s. 812.13(2)(b).

Robbery / Armed Robbery

Offense	ELEMENTARY	SECONDARY
1st	*K-1:* Principal's discretion ranging from parent conference, counseling, silent lunch, detention, ISS to OSS, parent notification. *2–5:* OSS for minimum of five (5) days.	OSS for minimum of ten (10) days up to expulsion.

8. EXTORTION – NOTIFY LAW ENFORCEMENT

Obtaining something of value through use of threat or force. Whoever, either verbally or by a written or printed communication, maliciously threatens to accuse another of any crime or offense, or by such communication maliciously threatens an injury to the person, property or reputation of another, or maliciously threatens to expose another to disgrace, or to expose any secret affecting another, or to impute any deformity or lack of

chastity to another, with intent thereby to extort money or any pecuniary advantage what so ever, or with intent to compel the advantage whatsoever or with intent to compel the person so threatened, or any other person, to do any act or refrain from doing any act against his or her will, Section 836.05, Florida Statutes.

Extortion

Offense	ELEMENTARY	SECONDARY
1st	Principal's discretion ranging from parent conference, CES, ISS to OSS.	OSS minimum five (5) days and payment for loss.
2nd	OSS minimum ten (10) days, recommendation for professional counseling and payment for loss.	OSS minimum ten (10) days, recommendation for professional counseling and payment for loss
3rd	Expulsion	Expulsion

DISCIPLINE CODES

INCIDENT CODES

State Defined			Locally Defined		
Incidents that must be reported to SESIR (School Environment Safety Incident Report) and are expected to be reported to law enforcement. Incident Report must be completed for these violations					
40	**ALC**	ALCOHOL	**58**	**ZBA**	ASSAULT/BATTERY
58	**BAT**	AGGRAVATED BATTERY	**46**	**ZAC**	CONSPIRACY
55	**ARS**	ARSON	**56**	**ZAL**	THREATS / LOUD-ABUSIVE LANGUAGE
45	**BUL**	BULLYING	**54**	**ZAP**	ABUSE – SCHOOL PROPERTY
54	**BRK**	BURGLARY	**40**	**ZAS**	NOT IN ASSIGNED SEAT/NOT SEATED
47	**DOC**	DISRUPTION ON CAMPUS-MAJOR	**39**	**ZAT**	TRUANCY - SKIPPING
40	**DRD**	DRUG SALES/DISTRIBUTION EXCLUDING ALCOHOL	**43**	**ZCC**	COPYING-CHEATING
40	**DRU**	DRUG USE/POSSESSION EXCLUDING ALCOHOL	**42**	**ZDA**	DEFIANCE OF AUTHORITY
57	**FIT**	FIGHTING	**46**	**ZDB**	DISTRUPTIVE BEHAVIOR
45	**HAR**	HARASSMENT	**46**	**ZDC**	DRESS CODE VIOLATION
46	**HAZ**	HAZING	**42**	**ZDR**	DISRESPECTFUL
-	**HOM**	HOMICIDE	**42**	**ZDS**	DISOBEDIENCE
-	**KID**	KIDNAPPING	**57**	**ZHA**	HITTING-PUSHING-TRIPPING
53	**STL**	GRAND THEFT	**40**	**ZHT**	HABITUAL TARDINESS
47	**OMC**	OTHER MAJOR	**47**	**ZIB**	INAPPROPRIATE BEHAVIOR
58	**PHA**	SIMPLE BATTERY	**55**	**ZIP**	INTERNET POLICY VIOLATIONS
59	**ROB**	ROBBERY	**43**	**ZLY**	LYING
51	**SXA**	SEXUAL ASSAULT	**57**	**ZMC**	MINOR CONFRONTATION (VERBAL OR PHYSICAL)
51	**SXB**	SEXUAL BATTERY (RAPE)	**-**	**ZND**	NONDISCIPLINARY
52	**SXH**	SEXUAL HARASSMENT	**45**	**ZPF**	PROFANITY UNACCEPTABLE LANGUAGE
52	**SXO**	SEXUAL OFFENSES (OTHER)	**42**	**ZRV**	RULES VIOLATION
42	**TBC**	TOBACCO	**53**	**ZSL**	STEALING
56	**TRE**	THREAT/INTIMIDATION	**52**	**ZSM**	SEXUAL MISCONDUCT
53	**TRS**	TRESPASSING	**50**	**ZUO**	POSSESSION UNAUTHORIZED OBJECT
54	**VAN**	CRIMINAL MISCHIEF	**43**	**ZZZ**	CELL PHONE
48	**WPO**	WEAPON POSSESSION	**-**	**ZOF**	OFF CAMPUS FELONY OFFENSE
-	**UBL**	UNSUBSTANTIATED BULLYING	**55**	**ZAR**	ARSON
-	**HSN**	HOPE SCHOLARSHIP NOTIFICATION	**54**	**ZDP**	DESTRUCTION OF SCHOOL PROPERTY
-	**UHR**	UNSUBSTANTIATED HARRASSMENT	**58**	**ZPA**	PHYSICAL ALTERCATION
-	**USA**	UNSUBSTANTIATED SEXUAL ASSAULT			
-	**USB**	UNSUBSTANTIATED SEXUAL BATTERY			

SESIR Codes & Definitions

NOTE: *This page reflects changes to Rule 6A-1.0017 that were approved by the State Board of Education on December 14, 2022, and that go into effect on January 17, 2023.*

The following SESIR definitions were approved by the State Board of Education (Rule 6A-1.0017) to enable school districts to correctly code data used to report incidents that are against the law or represent serious breaches of the code of student conduct. This includes those incidents considered severe enough to require the involvement of a School Resource Officer (SRO) or incidents to be "Reported to Law Enforcement." The following definitions are not intended to be an additional reporting system for law enforcement. **SESIR incidents can involve students (including out-of-district students), non-students, school personnel, and/or unknown perpetrators.**

For more information about SESIR, including Frequently Asked Questions, please visit the About SESIR page. Online training can be found at SESIR.org.

Alcohol (ALC) - Level IV
(possession, use, or sale) Possession, sale, purchase, distribution, or use of alcoholic beverages. Use means the person is caught in the act of using, admits to use or is discovered to have used in the course of an investigation. Alcohol incidents cannot be Drug-related.

Aggravated Battery (BAT) - Level I
(intentional great bodily harm) A battery where the attacker intentionally or knowingly causes more serious injury as defined in Rule 6A-1.0017(8)(g), such as: great bodily harm, permanent disability, or permanent disfigurement; uses a deadly weapon; or, where the attacker knew or should have known the victim was pregnant.

Arson (ARS)- Level I
(intentionally setting a fire on school property) To intentionally damage or cause to be damaged, by fire or explosion, any dwelling, structure, or conveyance, whether occupied or not, or its contents. Fires that are not intentional, that are caused by accident, or do not cause damage are not required to be reported in SESIR.

Bullying (BUL) - Level IV
(intimidating behaviors that are repeated, intentional, and involve a power imbalance) Systematically and chronically inflicting physical hurt or psychological distress on one or more students or employees. Bullying includes instances of cyberbullying, as defined in Section 1006.147(3)(b), F.S. Bullying may include, but is not limited to, repetitive instances of teasing, social exclusion, threats, intimidation, stalking, physical violence, theft, harassment, public or private humiliation, or destruction of property. If the physical harm or psychological distress is not the result of systematic or chronic behavior, evaluate for Harassment.

Burglary (BRK) - Level II
(illegal entry into a facility) Unlawful entry into or remaining in a dwelling, structure, or conveyance with the intent to commit a crime therein.

Criminal Mischief (VAN) - Level III
(destruction, damage, or defacement of school or personal property) ($1,000 threshold) Willfully and maliciously injuring or damaging by any means any real or personal property belonging to another, including, but not limited to, the placement of graffiti thereon or other acts of vandalism thereto. Incidents that fall below the $1,000 threshold are not reportable in SESIR, but instead should be reported as locally-defined incidents according to district policies.

Disruption on Campus-Major (DOC) - Level III
(major disruption of all or a significant portion of campus activities, school-sponsored events, and school bus transportation) Disruptive behavior that poses a serious threat to the learning environment, health, safety, or welfare of others. Examples of major disruptions include bomb threats, inciting a riot, or initiating a false fire alarm.

Drug Sale/Distribution Excluding Alcohol (DRD) - Level II
(illegal sale or distribution of drugs) The manufacture, cultivation, purchase, sale, or distribution of any drug, narcotic, controlled substance or substance represented to be a drug, narcotic, or controlled substance.

Drug Use/Possession Excluding Alcohol (DRU) - Level III
(illegal drug possession or use) The use or possession of any drug, narcotic, controlled substance, or any substance when used for chemical intoxication. Use means the person is caught in the act of using, admits to use or is discovered to have used in the course of an investigation.

Fighting (FIT) - Level III
(mutual combat, mutual altercation) When two or more persons mutually participate in use of force or physical violence that requires either physical intervention or results in injury requiring first aid or medical attention. Lower-level fights, including pushing, shoving, or altercations that stop on verbal command are not required to be reported in SESIR.

Grand Theft (STL) - Level III
(taking of property from a person, building, or a vehicle) ($750 threshold) The unauthorized taking of the property of another person or organization, including motor vehicles, valued at $750 or more, without threat, violence, or bodily harm. Incidents that fall below the $750 threshold are not reportable in SESIR, but instead should be reported as locally-defined incidents according to district policies. Thefts of property of any value that involve a use of force, violence, assault, or putting the victim in fear must be reported as Robbery.

Harassment (HAR) - Level IV
(one-time, insulting behaviors) Any threatening, insulting, or dehumanizing gesture, use of data or computer software, or written, verbal, or physical conduct that places a student or school employee in reasonable fear of harm to his or her person or damage to his or her property, has the effect of substantially interfering with a student's educational performance, opportunities, or benefits, or has the effect of substantially disrupting the orderly operation of a school including any course of conduct directed at a specific person that causes substantial emotional distress in such a person and serves no legitimate purpose. Instances of Harassment that are chronic or repeated in nature should be evaluated for Bullying or Bullying-related.

Hazing (HAZ) - Level III
Any action or situation that endangers the mental or physical health or safety of a student at a school with any of grades 6 through 12 for purposes of initiation or admission into or affiliation with any school-sanctioned organization. "Hazing" includes, but is not limited to: (a) pressuring, coercing, or forcing a student to participate in illegal or dangerous behavior, or (b) any brutality of a physical nature, such as whipping, beating, branding, or exposure to the elements.

Homicide (HOM) - Level I
(murder, manslaughter) The unjustified killing of one human being by another.

Kidnapping (KID) - Level I
(abduction of an individual) Forcibly, secretly, or by threat, confining, abducting, or imprisoning another person against his/her will and without lawful authority.

Other Major (OMC) - Level III
(major incidents that do not fit within the other definitions) Any serious, harmful incident resulting in the need for law enforcement consultation not previously classified. This includes any drug or weapon found unattended and not linked to any individual; such incidents must be coded with the appropriate Related element (such as Drug-related or Weapon-related) and incident involvement must be reported as unknown.

Robbery (ROB) - Level II
(using force to take something from another) The taking or attempted taking of money or other property from the person or custody of another with the intent to permanently or temporarily deprive the person or owner of the money or other property under the confrontational circumstances of force, or threat of force or violence, and/or by putting the victim in fear. A key difference in Grand Theft and Robbery is that Robbery involves violence, a threat of violence or assault, and putting the victim in fear.

Sexual Assault (SXA) - Level II
An incident that includes fondling, indecent liberties, child molestation, or threatened rape. Both males and females can be victims of sexual assault.

Sexual Battery (Rape) (SXB) - Level I
(attempted or actual) Forced or attempted oral, anal, or vaginal penetration by using a sexual organ or an object simulating a sexual organ, or the anal or vaginal penetration of another by any body part or foreign object. Both males and females can be victims of sexual battery.

Sexual Harassment (SXH) - Level III
(undesired sexual behavior) Unwelcome conduct of a sexual nature, such as sexual advances, requests for sexual favors, and other verbal, nonverbal, or physical conduct of a sexual nature. Harassing conduct can include verbal or nonverbal actions, including graphic and written statements, and may include statements made through computers, cellphones, and other devices connected to the Internet. The conduct can be carried out by school employees, other students, and non-employee third parties.

Sexual Offenses (Other) (SXO) - Level III
(lewdness, indecent exposure) Other sexual contact, including intercourse, without force or threat of force. Subjecting an individual to lewd sexual gestures, sexual activity, or exposing private body parts in a lewd manner. (Law enforcement must be notified to investigate.)

Simple Battery (PHA) - Level II
An actual and intentional touching or striking of another person against his or her will, or the intentional causing of bodily harm to an individual.

Threat/Intimidation (TRE) - Level III
(instilling fear in others) An incident where there was no physical contact between the offender and victim, but the victim reasonably believed that physical harm could have occurred based on verbal or nonverbal communication by the offender. This includes nonverbal threats and verbal threats of physical harm which are made in person, electronically or through any other means.

Tobacco (TBC) - Level IV
(cigarettes or other forms of tobacco/nicotine) The possession, sale, purchase, distribution, or use of tobacco *or nicotine* products on school grounds, at school-sponsored events, or on school transportation by any person under the age of 21. Tobacco incidents cannot be Drug-related.

Trespassing (TRS) - Level III
(illegal entry onto campus) To enter or remain on school grounds/campus, school transportation, or at a school-sponsored event/off campus, without authorization or invitation and with no lawful purpose for

entry. Only incidents involving a student currently under suspension or expulsion, or incidents where any offender (student or non-student) was previously issued an official trespass warning by school officials, or where any offender was arrested for trespass are required to be reported in SESIR. Trespass incidents that did not have a prior official warning, did not result in arrest, or did not involve students under suspension or expulsion should be reported as locally defined incidents according to district policies.

Weapons Possession (WPO) - Level II
(possession of firearms and other instruments which can cause harm) Possession of a firearm or any instrument or object as defined by Section 790.001(6) and (13), F.S., that can inflict serious harm on another person or that can place a person in reasonable fear of serious harm.

Reporting Guidelines

Reported to Law Enforcement

"Reported to Law Enforcement", means that an *official* action was taken by a School Resource Officer (SRO) or a local Law Enforcement Officer such as: a case number was assigned, a report was filed, an affidavit was filed, a civil citation was issued, an investigation was conducted and found to be an incident reportable to SESIR, or an arrest was made. The presence of, notification of, or consultation with a Law Enforcement Officer or SRO, is not sufficient for an incident to be coded as "Reported to Law Enforcement." **NOTE:** District zero tolerance policies (s. 1006.13(2), F.S.) identify which incidents pose a threat to school safety versus those that are considered a petty act of misconduct.

Levels I - IV = Preliminary Rank Ordering of Incident Types for School Reporting

(Level I Incidents are the Most Serious, and Level IV Incidents are the Least Serious). General Rule: When multiple incidents occur at the same time and place, code the incident that is the most serious incident. The incident that caused the most injury or the highest loss of property or monetary cost should be the one reported. The particular context of the incidents should also be considered when determining the level of seriousness. If school personnel determine that an incident ranked at a lower level is more serious than another incident which is ranked higher according to this guide, school personnel should report the incident they judge to be more serious. Any Related Elements that apply must also be reported.

Student Meals at School - SY 2025-2026

For more information or if you have questions, please call the District Food Service office at 471-5676.

Policy

The District participates in the National School Lunch and Breakfast programs, as well as, the Child Care Food Program providing meal service to all children in attendance regardless of race, color, sex, disability, age, or national origin.

- Field trip meals are available. Once a child is eligible for meal benefits, they cannot be required to “pay” for a meal regardless of the location from which the meal is served.
- Federal regulations dictate that students must come to the cafeteria (unless deemed physically incapable) and allowed to make their own meal selections and staff must not choose meal selections for children without parent/student input.
- Federal Regulations require that meal substitutions are made for children with life threatening medical disabilities and/or foods that interfere with major body functions documented by a written prescription from a licensed physician. Work with the School Health Nurse and/or Cafeteria Manager if you have this need. The documentation to support the meal modification must be updated annually.
- Substitutions are not made for non-life-threatening medical disabilities and/or foods that interfere with major body functions: such as foods children dislike, cultural, religious or ethical beliefs. Our menus contain ample food selections so the child can avoid “problem” items and still select a healthy lunch.
- Adult breakfast and lunch can be purchased. Parents are welcome to dine with students but should follow established school check-in procedures before coming to the cafeteria.

Meal Pattern

The department has implemented a USDA Food Based Meal Pattern which is a key component of the Healthy, Hunger-Free Kids Act of 2010. The main concepts are:

- Planned student meals will meet Pre-K, K-5, 6-8, and 9-12 grade groupings that feature age-appropriate calorie limits.
- At breakfast and lunch, students must take at least one serving of fruit and/or vegetable to have a reimbursable meal. We offer a wide variety of vegetables, including dark green and red/orange vegetables and legumes.
- We offer 1% unflavored milk or fat-free flavored milk.
- Meals will contain whole grain rich items and limit sodium content of items served.
- When Offer vs. Serve (OVS) is implemented, students may decline 1 breakfast item or 2 lunch components and still have a reimbursable meal as long as one choice is a fruit or vegetable.

How the Food Service Program Works

The Food and Nutrition Department operates on a self-sustaining non-profit basis. Federal and state reimbursements and government commodities help to offset the cost of meals for students.

- All students have an established Cafeteria account that allows your child to enter his or her personal identification number (PIN) to access his/her. Your child's PIN number will stay the same while the student is enrolled in the Highlands County school system.

Community Eligibility Provision

The School Board of Highlands County will continue to participate in the Community Eligibility Provision to provide breakfast and lunch to all students at no charge. À la carte items will continue to be offered at most locations.

Breakfast

Breakfast includes 2 fruit/juice items, 2 grain and/or meat items, and a choice of milk flavors. Breakfast is planned to meet ¼ of the child's daily nutritional requirements. Some elementaries participate in Breakfast in the Classroom where breakfast is offered to each student daily. If you do not want your student served a daily breakfast, please contact the Cafeteria Manager at the school, for an Opt Out of School Meal form.

Lunch

Lunch includes a choice of meat/meat alternative, grain items, fruits, vegetables and a choice of milk flavors. Lunch is planned to meet ⅓ of the child's daily nutritional requirements.

- A la carte items are available and prices are set to encourage students to select a reimbursable meal as the best nutritional value.
- Cafeteria staff does not monitor student a la carte selections unless the parent has established guidelines for their child with the school's Cafeteria Manager.

Payment Options

Payment for à la carte items is due at the time the items are served. Parents may make advanced payments

- Cash or check payments should be submitted in an envelope (available from the Cafeteria Manager) with the child's name, student ID number, and homeroom teacher's name on the outside. If you are writing a check, please make it payable to your child's school and include the student's full name and ID number in the Memo portion of the check.
- Older students may also pay for meals by giving cash and/or checks to the cashier
- Payments are accepted by credit/debit cards by going to https://linqconnect.com/main where you can make prepayments, view transactions on your child's account, and arrange to receive email reminders when the meal account balance is low.

Leftover Account Balances

Any remaining account balance as of June 30th is carried to the next school year. If a student has withdrawn or graduated and has a positive balance a request for a refund may be made within 30 days. If no request is received within 30 days, the account will be closed and the funds will no longer be available.
If you have deposited money into your student's account and you have a positive balance, you may speak to the Cafeteria Manager and complete a Refund form. Amounts under $20 can be refunded at the site. However, refunds in excess of $20 must be processed through the district office and a check is mailed.

"This institution is an equal opportunity provider"

SCHOOL DIRECTORY

Elementary Schools

Avon Elementary	705 W. Winthrop Street; Avon Park, FL 33825	**863-452-4355**
Cracker Trail Elementary	8200 Sparta Road; Sebring, FL 33875	**863-471-5777**
Fred Wild Elementary	3550 Youth Care Lane; Sebring, FL 33870	**863-471-5400**
Lake Country Elementary	516 County Road 29; Lake Placid, FL 33852	**863-699-5050**
Lake Placid Elementary	101 Green Dragon Drive; Lake Placid, FL 33852	**863-699-5070**
Memorial Elementary	867 Memorial Drive; Avon Park, FL 33825	**863-784-0200**
Park Elementary	327 E. Palmetto Street; Avon Park, FL 33825	**863-452-4373**
Sun 'N Lake Elementary	4515 Ponce de Leon Boulevard; Sebring, FL 33872	**863-471-5464**
Woodlawn Elementary	817 Woodlawn Drive; Sebring, FL 33870	**863-471-5444**

Middle Schools

Avon Park Middle	401 S. Lake Avenue; Avon Park, FL 33825	**863-452-4333**
Hill-Gustat Middle	8200 Sparta Road; Sebring, FL 33875	**863-471-5437**
Lake Placid Middle	3550 Youth Care Lane; Sebring, FL 33870	**863-471-5030**
Sebring Middle	516 County Road 29; Lake Placid, FL 33852	**863-699-5700**

High Schools

Avon Park High	700 E. Main Street; Avon Park, FL 33825	**863-452-4311**
Lake Placid High	202 Green Dragon Drive; Lake Placid, FL 33852	**863-699-5010**
Sebring High	3514 Kenilworth Boulevard; Sebring, FL 33870	**863-471-5500**
Highlands Success Academy	426 School Street; Sebring, FL 33870	**863-471-5457**
Highlands Virtual School	700 E. Main Street; Avon Park, FL 33825	**863-471-5679**

Other District Contacts

Deputy Superintendent	**863-471-5734**
Assistant Superintendent of Business/Operations	**863-471-5626**
Assistant Superintendent of Elementary Programs	**863-471-5569**
Assistant Superintendent of Secondary Programs	**863-471-5608**
Assistant Superintendent of Student Support Services	**863-471-5567**
Director of Food Service	**863-471-5676**
Director of Transportation	**863-471-5761**
Director of Accounts/Finance	**863-471-5664**
Director of Facilities	**863-471-5646**
Director of Exceptional Student Education	**863-471-5583**

General Information

For more information about the following, please contact a school department listed below:

School Assignment	Student Support Services	**863-471-5567**
Bus Transportation	Assigned School or	**863-471-5674**
Breakfast/Lunch	Assigned School or	**863-471-5676**
Day Care	Assigned School	
After School Programs	Assigned School	
Extracurricular Activities	Assigned School	
Student Schedule	Assigned School	